

Family Laws That Are Similar in Pakistan Law and Islamic Law

Law	Pakistan Law Reference	Islamic Law Reference (Qur'an)
Marriage (Nikah) Requirements	Muslim Family Laws Ordinance, 1961 – Section 5 (Registration)	Surah An-Nisa (4:3): “Marry women of your choice...”
Right to Inheritance	Succession Act, 1925 (for Muslims, follows Islamic shares)	Surah An-Nisa (4:11–12): Detailed shares for heirs
Maintenance of Wife	Family Courts Act, 1964 – Section 5	Surah Al-Baqarah (2:233): “The father shall bear the cost...”
Guardianship of Children	Guardians and Wards Act, 1890	Surah Luqman (31:14): Emphasis on parental responsibility
Dower (Mahr)	Muslim Family Laws Ordinance, 1961 – Section 10	Surah An-Nisa (4:4): “Give women their dower as a gift...”

Family Laws That Differ in Pakistan Law and Islamic Law

Law	Pakistan Law Reference	Islamic Law Reference (Qur'an)	Difference
Polygamy Regulation	Muslim Family Laws Ordinance, 1961 – Section 6 (Requires permission from first wife)	Surah An-Nisa (4:3): Permits up to four wives without requiring prior consent	Pakistan law adds procedural restriction
Adoption	Guardians and Wards Act, 1890 – Allows legal adoption	Surah Al-Ahzab (33:4–5): “Call them by their fathers’ names...”	Islam discourages full legal adoption (nasab change)

Equal Inheritance for Genders	Some modern interpretations push for equal shares	Surah An-Nisa (4:11): Male gets double share of female	Pakistan debates equality; Qur'an assigns fixed shares
Khula (Female-Initiated Divorce)	Dissolution of Muslim Marriages Act, 1939 – Allows judicial khula	Surah Al-Baqarah (2:229): Permits khula with compensation	Pakistan requires court process; Qur'an allows direct negotiation
Custody Age Limits	Family Courts Act – Sons with father after age 7, daughters with mother until puberty	No fixed age in Qur'an; decisions based on welfare	Pakistan law sets age thresholds; Islam emphasizes best interest

ISLAMIC LAW

Source

“<https://nasirlawsite.com/research/polygamy.htm>”

General injunctions for family life.

- The injunctions for family life are given in more details than any other subject in the Holy Quran. In the social life of man 'home' is of utmost gravity. What is it that we call Society The doors of different homes open daily and the individual dwellers get dispersed in different directions; that is what makes a society. In the evening the same people, return to their respective homes. These very homes keep developing the future community. The upbringing of children depends upon their internal atmosphere. The fate of the future of nation is thus directly connected with the way children are brought up.
- The concept of Nizaam-e-Rabubiyat (the economic system laid down in the Quran) is based on the principle that every earning member of the society shall work according to his capacity and all that is gained by their collective efforts, shall be spent in fulfilling the needs of all the individuals of the society. In a miniature form, this system takes shape within the four walls of a home. The earning

member of the family does not keep to himself what he earns, nor does he give priority to his own needs over the needs of the other members of the family. His earnings are spent by all the members of the family. In so doing, the earner does not bestow a favour upon the recipient, nor does the recipient receive it as charity. The donor considers it to be his responsibility and the recipient considers it to be his right. Based on the principle of the division of labour, all keep themselves busy in the performance of their respective duties. From this arises the feeling of mutual co-operation and thus a pleasant atmosphere prevails. The result of this delightful prevalence produces the occurrence of deep relationship of love and attraction which lasts for the rest of their lives. Thus a good home presents an example for the good society.

- That is why the Holy Quran has accorded such great importance to family life and has provided detailed injunctions to make it exemplary: and this aspect takes precedence in our order of priority too in connection with Quranic injunctions.

INJUNCTIONS - FAMILY LIFE (1): THE STATUS OF MAN AND WOMAN.

- Basically, according to the Holy Quran, there is no difference or distinction between one child and another by virtue of his birth: (17:70) "We have made every human being equally worthy of respect" is the ground rule. It is apparent that both men and women are included in "humanity" and both of them are equally worthy of respect. In pre-Islamic Arabia, a girl was considered inferior to a boy, and sadness, depression and anger of spirits prevailed on the birth of a girl. The Holy Quran has forcefully condemned this mentality and has described it as follows: (16:58-59) "When news is brought to one of them of the (birth) of a female (child), his face darkens and he is filled with inward grief. The birth of a girl is considered such a disgraceful event that he hides himself with shame from the people because of the bad news announced to him. He begins to think whether he should keep her alive with disgrace or bury her in the

dust, in order to save himself from this ignominy. Ah! What an evil (choice) he decides on her."

- The result of this degraded status of girls in the Arab society of that era, was that they were kept devoid of literacy and art. They were considered foolish and ignorant. There was no value of their opinions and they were considered unworthy of consultation in settling affairs. It is apparent that when they are kept in this position in successive generations, their intellect would gradually degenerate. These were the women whom the Quran describes as: (43:18) "One brought up among ornaments and unable to give a clear account in a dispute". This was the abatement in a woman, on the basis of which the Quran had advised that when a woman has to appear before a court of law, a second woman shall stand by her side to remind her if she forgets or is confused. (See under the heading "Evidence"). (2:282) "If one of them gets confused or forgets, the other may remind her."
- The Quran raised woman from this level and with proper education and upbringing brought her to the level of man in all walks of life. Men were instructed not to look down on women because: (3:194) "The one of you is from the other". However, in relation to certain natural functions, like 'childbirth' and the nurturing and upbringing of children, there is their own distinct 'division of labour'. From this point of view, in the 'allocation' of labour, men are superior to women in some affairs, and women are superior to men in others. This is what is meant by: (4:32;34) "Allah has made some of them excel others". In order to fulfil their natural obligations, a woman's major part of life is spent in the giving birth to and in upbringing of children. During this period she is not capable of earning her own livelihood. Thus (as is stressed by the Quran) in a family life, man is responsible for fulfilling the needs of the woman: (4:34) "Men are the maintainers of women". This has been made clear so that men may not think that women consume their earnings, while sitting at home, with no effort on their part. Thus taking them as 'needy', men may consider them despicable and abject. The Quran has explained to man that family life is a mutual affair; in it the duties performed by woman are not within your reach; as such it is your duty to provide for her and the

children. This does not mean that the Quran considers woman a disabled person entirely dependent on man. What has been said relates only to distribution of work in family life; otherwise a woman can also earn her livelihood and be its owner. It is said in Surah An-Nisa: (4:32) "Men shall have what they earn and women shall have what they earn."

- Since in family life the fulfillment of the needs of the wife and children is the responsibility of man, in the inheritance of the property of parents a daughter's share is half that of a son. (Details will be found in the chapter of Inheritance).
- Besides the difference described above, the status of men and women is equal in all affairs of daily life; equal to the extent that the Quran has used the word Zauj for them. If two parts of a certain object are such that one remains incomplete without the other, each one of these two parts is called Zauj i.e. one serves as a means to complement the other, e.g. the two wheels of a cart: if one is missing, or is weak, or comparatively smaller, the other shall become useless. That is the relationship between a wife and her husband and their positions in the vehicle of life. As far as belonging to different sexes is concerned, there is no special competency that men possess and women do not. Observe how the Holy Quran has described their qualities as parallel to one another when it is said; (33:35) "It is a fact that as men can bow down to the Divine Laws so can women; as men can be the believers in truth, so can women; as men are capable of attesting and verifying their 'belief' by their personal acts, so are women; as men possess the capability of not losing heart in the event of trials, so are women; as men can go on submitting to the feelings of their responsibilities, so do women possess this capability; as men are equipped with the quality of self-sacrifice, so are women; as men can keep complete control over themselves, so can women; as men possess the capability of keeping themselves subservient to the Divine Laws, so do women.
- As men and women both possess all the above qualities, the fruits of their deeds should also be similar for each other. For the same reason Allah has prepared protection and reward for both."

- It can thus be seen from the above that there is no aspect of life in which men are competent but the women are not. The Quran says: (4:124) "If having professed Eemaan, any does deeds of righteousness (constructive and positive), whether male or female, both shall get the life of paradise and not the least injustice will be done in their recompense."
- At another place the Quran states: (3:194 ; 16:97) "Never shall We deprive any of you of the fruits of your efforts _ whether male or female. You are the individuals belonging to the same kind: so why should there be any distinction or classification between you"
- To enjoin what is lawful according to the Divine Laws and prohibit what is unlawful is the basic duty (function) of an Islamic State; and men and women both can take part in the performance of this duty: (9:71) "The believing men and women, are friends and associates (companions) of one another on account of their sharing the motto of life, they enjoin what is just and forbid what is evil; they establish the System of 'Salaat' and provide means of nourishment to humanity, and obey Allah and His Rasool - (the Divine Order). These are the people who shall benefit from the means of nourishment provided by Allah and the whole world shall witness the power and wisdom of the Divine Laws."
- Thus a woman cannot be declared ineligible for taking part in state affairs merely on account of her being a woman.
- It is apparent from the principles laid down in the Quran that any law that discriminates between men and women only on the basis of sex, is repugnant to the Quran (Except in those matters where the Quran has specifically said so, e.g., share in inheritance).

INJUNCTIONS - FAMILY LIFE (2): RELATIONS BETWEEN HUSBAND AND WIFE

1. NIKAH - (MARRIAGE CONTRACT).

- Nikaah is a mutual contract between a man and a woman. It appears in Surah An-Nisa: (4:21) "Your wives have taken a firm covenant from you". By virtue of this contract a man and a woman pledge to accept the rights and obligations laid down by the Quran in respect of their being husband and wife in order to lead a life of companionship.

2. AGE FOR NIKAH.

- According to the Holy Quran, the age for Nikaah is the age of puberty. The Quran has specifically mentioned: (4:6) "You should, as their guardians, keep monitoring the orphans till they reach the age of Nikaah."
- However, the Quran has not determined as to what can be the age of puberty besides other factors, as it differs in different climatic conditions. At yet another place it is stated as age of adolescence: (6:153) : (17:34) "until they reach the age of adolescence." What this age is, has been explained by the Quran at another place while pointing towards the different stages of human life. It is said: (40:67) "Then He brings you forth as an infant, then lets you reach the age of adolescence, then lets you become old."
- Keeping the above verses in view, the matter becomes quite clear. In Surah An-Nisa (4:6) was said i.e., till they reach the age of Nikaah (adolescence) and in Surah An'aam has been said (6:153) ' till they reach the age of adolescence and in (40:67) this age has been interpreted as an age (6:153) between childhood and old-age i.e. the adolescence; it thus becomes evident that according to Quran, the age of Nikaah is the age of puberty (adolescence). Thus the Quran has laid down the age of marriage as the age of puberty both for the boy and the girl.
- Therefore the question of marriages of immature people (before they reach adolescence) does not arise. It is up to the Islamic Government to determine this age (according to its environmental circumstances).
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3. MUTUAL CONSENT.

- Just as the age of puberty of both boy and girl is essential for the contract of marriage, likewise their mutual consent is also mandatory: without it the contract of marriage cannot take place. About men it is said: (4:13) "Marry the woman of your liking."
- About women it is said: (4:19) "It is not lawful for you to bring women into your wedlock forcibly (without their consent)."
- Since the Nikaah cannot be solemnised in childhood, the question of appointing a guardian does not arise. However if the woman so desires she can appoint an attorney in order to settle affairs on her behalf. The statement in Surah Baqarah, (2:237) "In whose hands is the marriage tie", means the attorney appointed by the woman, or the court itself having the power of dissolution of marriage.

4. CEREMONY FOR NIKAAH (MARRIAGE).

The Quran has not laid down any specific ceremony for marriage. There is not even a mention of any special person who solemnises Nikaah. Since this is a contract, whatever laws are laid down by the government for the ratification of contracts, this contract should also be ratified (confirmed) according to the prevalent laws.

It is essential for the government to make definite laws for the purpose. Moreover, it is equally important to proclaim the solemnisation of Nikaah. A marriage kept secret is not tenderised by the Quran. (5:5)

5. FORBIDDEN FOR MARRIAGE (MUHARRAMAAT).

The Holy Quran has declared in detail those men and women who cannot marry each other. The list is as follows:

a) Marriage between a Muslim man or woman (monotheists) and polytheist man or woman is unlawful. It is said: (2:221) "Do not marry unbelieving woman (idolaters) until they profess Eemaan. A captive Muslim man is better than a free Mushrik man regardless of how pleasing he may appear; it is because marriage between persons of different ideologies makes

family life a veritable hell. This is why Allah's Law prevents you from such a union. On the other hand, marriage between spouses with a similar ideology creates a paradisiacal family life. Divine Law wants to bestow on you the contentments of paradisiac life and protects you from various pitfalls. Allah explains to mankind His Laws clearly so that they may see the truth laid open before them."

At another place it is said: (5:5) "Chaste Mu'min women", which means that it is necessary for the woman to be a Muslimah.

b) Muslim men can marry women from amongst the people of the Book:(5:5)

"Chaste women from amongst the people of the Book are also made lawful to you" under conditions laid down for marrying the Muslim women. But a Muslim woman cannot marry a non-Muslim man (5:5). It clarifies the issue that Muslim men can marry woman from the people of the Book but Muslim women cannot marry their men.

It therefore implies that:

i) Muslim men can marry Muslim women or women from people of the Book, and

ii) Muslim women can marry only Muslim men.

Remember that marriage between a Muslim man and a woman from the people of Book is only permitted; it is not an injunction. An Islamic State can suspend this permission for a period for the sake of social exigencies or those pertaining to 'Deen'. However, it cannot repeal this injunction (it can only suspend it for a period); for example, the prohibition of selling meat for two days every week as it is practised in Pakistan these days.

c) According to verses (4:20-24) the following women are declared unlawful for marriage (with Muslim men): "Mothers (real or foster, those who have suckled you), daughters, sisters, father's sisters, mother's sisters, brother's daughters; sister's daughters, women who have suckled you and girls with

whom you have shared the suck, (your foster sisters); your wives mothers; your step daughters under your guardianship, born of your wives to whom you have gone in _ no prohibition if you have not gone in: (those who have been) wives of your sons proceeding from your loins; and two sisters in wedlock at one and the same times, except for what is past; for Allah is oft-forgiving, most merciful."

[The word Muhsanah means pious and chaste women, it also means 'married women'. The latter meaning is applicable here].

The Holy Quran has not given the details of (breast feeding) itself i.e. as to how the condition of suckling is fulfilled; neither has it laid down how the condition of being a foster sister (sharing one mother's milk with you) is satisfied. Its details shall be ascertained by the Islamic State. Remember that only that woman shall be unlawful to you who has suckled you or the girl who has shared the suck.

It has been said above that those women who are already married are also unlawful, yet the Quran did make an exception in it. The women who had migrated from Makkah and their husbands were present (it is apparent that those husbands were non-Muslims, otherwise they could also have migrated) were also permitted for marriage (6:10); an Islamic State can issue special orders in the light of this exception, if such circumstances re-occur in any country.

Note: Adopted relations do not become real: thus it is said: (33:4) "Nor has He made your adopted sons as real sons". (It shall be applicable to all adopted sons as real sons). (It shall be applicable to all adopted relations). It shows that the Quran gives no legal status to adopted relations.

In Surah An-Noor, a verse says: (24:3) "A man guilty of adultery or fornication marries only a woman similarly guilty or a Mushirkah woman; and a woman guilty of adultery or fornication can be married only by a man similarly guilty or by a Mushrik man, that is unlawful for Mu'mineen."

But we do not consider this purport as true. The ensuing results from this are apparent. In our view, the word Nikaah in this verse has been used for cohabitation which is its basic meaning. Thus the verses mean as follows - If any of the believing man or a believing woman is determined to remain chaste, adultery or fornication cannot occur. It can occur only by their mutual consent. [the question of Zina bil jabr (rape) is different]; only those people commit this crime who do not believe in the Divine Laws; believers cannot act as such. Thus this verse emphasises and vividly explains the abomination of the act of fornication. That is why we have not given it in the list of "Muharramaat" () (persons between whom marriage is unlawful).

As stated before, in the early days of Islam there were such women in Makkah as had embraced Islam themselves but their husbands did not and they had migrated to Madina leaving their husbands; believing men should marry them (60:10). From this it can be deduced that by abandoning Islam, the marriage automatically gets dissolved. But its legal decision lies with the Islamic Government.

6. POLYGAMY.

The Quran has prescribed monogamy (one wife at a time), as a matter of rule. In case of constancy becoming extremely difficult with the wife, (details shall be discussed under the heading 'Divorce'), a second wife is allowed in her place: (4:20) "And if you decide to take a wife in the place of another..."

Let it be made clear immediately that it does not mean that you are free to divorce your wife any time you like and bring another one in her place. The conditions under which divorce can be resorted to are being described in a separate chapter. Monogamy; is the principle laid down by the Quran. But if any particular circumstances crop up in society (for example on account of war) when the number of widows and young girls increases and there is no satisfactory remedy for it is in view, the Islamic Government can allow a man to marry more than one woman (up to four) making an exception in the 'one wife' rule. But there are two essential conditions under which it can be allowed: firstly, that the man doing so can do justice with his wives; and

secondly, that he is capable of supporting this large family. If any of these two conditions cannot be fulfilled, the second marriage is not allowed. Surah An-Nisa states: (4:3) "If ever such circumstances occur (for example on account of a war) that in the society men are lost (perished) and widows and orphans (boys and girls) increase, especially women without husbands (4:127) and an equitable and just solution cannot otherwise be found; under such circumstances it is allowed, for the sake of protection of these widows and orphans, that you can marry out of these women whom you like [those who are willing to marry you (4:19)]. For this purpose exception is given in the principle of 'one wife at a time'. In such an event, as the circumstances require and as the society decides, two or three, or four wives at a time, can be taken in marriage. But if you feel that in so doing you shall not be able to keep the scales of justice balanced amongst the different family members, then one man and one wife shall remain the law or the female slaves that you already possess (have brought in your Nikaah). After the advent of Islam, the custom of acquiring captives was abolished. In respect of possessing female captives, the words "you already possess", are to be taken special note of. Limiting to one wife is a much better course to avoid injustice in the family and to avoid additional encumbrance due to abundance of progeny.

This is the only verse in the Quran that allows polygamy and, as can be observed, it is conditional: "if you fear that you shall not be able to deal justly with the orphans, then only one wife is allowed". Without the occurrence of this condition, polygamy is disallowed. Let it be made clear that the word is not limited to mean only orphan boys and girls; the unmarried girls and women are also included in it. (see Lughatul-Quran). In the Quran itself you find the word (4:127) i.e. orphan (widow) women. As regards the condition of maintaining 'justice' it is not possible in this respect. Here justice means that you do not become so deeply inclined towards one wife that the other is left unattended to and uncared for! (4:129)

"Remember that under the circumstances explained in verse (4:3), when you marry more than one wife you shall have to deal with them justly. As far

as love and affection is concerned, it is impossible to deal with different wives equally. You will not be able to do so, no matter how much you desire it, because such things are related to emotions and equality in sentiments is just not possible. Here the 'justice' which is aimed at and which is possible, is that you do not become so much devoted to one wife that the other remains totally neglected. However, in social matters deal with them on the basis of equality. This shall meet the demand of justice according to the Divine Law; and by so doing you shall be protected against the pernicious effects of emotional imbalance. The Divine Law in this manner makes room for your protection and nourishment."

Remember that when a nation feels the urgency to solve the problem of widows and orphans, the women also shall take equal part in this decision; men alone shall not decide it. It shows that even under the extraordinary circumstances the consent of the first wife shall be mandatory, otherwise the home shall turn into a hell.

Except under the circumstances described above a second wife is not allowed.

7. FEMALE CAPTIVES.

During the period when the Quran was revealed, the slaves (captives), both men and women, were part of the Arab society. The Quran closed the door of slavery, and captive women who were part of the household, were either made a part of the respective families (were taken into wed-lock) or were gradually freed. The words whenever they occur in the Quran, mean 'those captive women who were present in those days.' Now the question of slave women does not arise.

8. FACILITATIONS FOR MARRIAGE.

The society ought to provide facilities to those who possess competence for marriage. The Quran addresses the Islamic society by saying: (24:32) "Make proper arrangement for the marriage of those men or women who have not got the adequate facilities for marriage."

But to get married is not an injunction; it is not necessary that men or women "must" get married. Those who wish to lead an unmarried life and for whom the means to get married are not available, should control their passions (abstain): (24:33) "Those who prefer a celibate life or have not the wherewithal for marriage, should exercise self-control."

During a state of extreme hunger, the Holy Quran has allowed the eating of unlawful things (according to need), but has not allowed fornication or adultery to satisfy one's sexual passions. Obviously man does not possess control over hunger, but on the other hand sexual urges are purely thought-motivated. Therefore the question of sexual constraint (helplessness) does not arise. An Islamic Society creates an environment in which sexual stimulations are least liable to occur.

9. SEXUAL INTERCOURSE.

Sexual intercourse is prohibited under the following conditions:

- a) During menstruation;
- b) While fasting, however, it is permitted during nights, in the month of Ramadaan (before the start and after termination of the "fast");
- c) While one is "in retreat" (I'tikaaf) in the mosques. (during the month of Ramadaan).

10. OBJECT OF SEXUAL INTERCOURSE.

The Quran says: (2:223) "Your wives are as a tilth unto you, so approach your tilths when you so desire."

This brings forth an important fact: one goes to the tilth in order to sow the seeds, therefore the object of sexual intercourse ought to be the augmentation of human race, not pleasure alone. This augmentation ought to be thoughtfully planned; it should not only meet personal requirements but also collective social exigencies. 'Approach the tilth' means, that you have sexual intercourse when you desire to have a child. This system (of

controlled mating) prevails in nature. At yet another place the words (4:24) have been used for it; which means that the object of marriage is fortification of your procreative energies within the bounds of wedlock and not the mere satisfaction of your lust (not to let your semen flow out purposelessly).

However, this is our deduction from the verses of the Quran.

11. THE OBJECT OF MATRIMONIAL LIFE.

The object of matrimonial life is that a husband and a wife cultivate love and companionship, so as to make life tranquil at home (life of peace and solace); thus it is said: (30:21) "Among His signs is that He created for you mates from among yourselves, that you may dwell in tranquillity with them and as such He has created such a deep relationship between yourselves, as a means of actualisation of potentialities for both of you. Verily in that are signs for those who reflect."

As to how much concord is present in the relationship between husband and wife, the Quran has beautifully described a metaphor, when it is said: (2:187) "They are an apparel for you, and you are an apparel for them."

As far as the mutual rights and obligations are concerned, the Quran has condensed it in one comprehensive sentence when it said: (2:228) "The obligations of women shall be equal to their rights, one obligation against each right*."

It has been described earlier that in view of the duties incumbent upon women, on account of their biological structure, the responsibility of earning sustenance for them rests upon men (4:34).

The relationship also expand through marriages Relationships of marriage (in-laws) come into existence in addition to the relationship of lineage: (25:54)

"In it are included both relationships of lineage and of in-laws."

12. DOWER.

a) In Surah An-Nisa, after giving the details of those between whom marriage is unlawful, it is said: (4:24); (5:5) "Except such women, others are lawful provided you seek (them in marriage) with gifts from your property."

The term "Mahr" (dower) is used for these gifts in Fiqh (jurisprudence).

The word "Mahr" does not occur in the Quran, instead the words "Ajoor" or "Saduqaah" have been used. The Quran has explained it further that (Mahr) is not a compensation for anything. This is a gift, without the concept of remuneration or reward. The Quran has also used the word "Nihlah" for it: (4:4) "And give the women (on marriage) their dower as free gift". In giving a "gift" is no concept of gain or compensation.

b) No amount for 'dower' has been stipulated by the Quran. Anything decided by mutual consent is "Mahr" but because its payment is essential, it has also been termed a 'duty' (Divine Command) (2:236-237), therefore it ought to be proportionate to one's economic status. In this connection guidance is also available in (2:236). It might expand to a heap of gold (4:20), In this verse Qintaar means a heap of gold.

c) The payment of dower ought to be made soon after Nikaah at the time of marriage. But it is evident from the verse 236 of Surah Al-Baqarah that an (Occasion may arise when the amount of dower could not be fixed at the time of marriage, In this verse it has been explained) (2:236)

"There is no blame on you if you divorce women before consummation or the fixation of their dower."

It means that if for some reason the amount of dower could not be fixed at the time of marriage, it can be determined later on.

d) Dower is the property of the woman; no one has the right to deprive her of this amount. However, a woman can remit a part thereof if she so desires. (4:4) "Pay the dower of your wives without any notion of a reward,

like the honeybee giving her honey (there is no concept of reward in it). Since dower is a gift and not an exchange, woman cheerfully remits a part of it, you can by all means use it for yourself."

A little later in the same Surah has been said that the amount of dower can be altered by mutual consent. In the words of the Quran: (4:24) "But if you agree mutually to vary the dower after it has been prescribed, there is no blame on you."

e) After marriage if divorce occurs before consummation, then:

i) If dower has not been fixed, then the man ought to pay something according to his economic status. Surah Al-Baqarah says: [(2:236; 33:49)]

"There is no blame on you if you divorce women before consummation or the fixing of their 'dower', but bestow on them (a suitable gift), the wealthy according to his means: and the poor according to his means (so that the loss she has thus suffered may be made good to a certain extent); gift of reasonable amount is due from those who wish to do the right thing."

ii) If dower was fixed, half of it shall have to be paid; but if the woman or her agent so agrees, or if the court of law thinks it necessary under certain circumstances, it can also be remitted fully: (2:237)

"And if you divorce them before consummation, and the dower had been fixed, half of the dower (is due to them) unless they forgo it willingly; or it is remitted by him in whose hands is the marriage tie. And to forgo what is due to you is more near to Taqwa (adherence to Allah's Law). And forget not that you have to act with grace towards one another. Surely Allah sees all what you do."

Verse (2:237) should be kept in mind: "In whose hands is the marriage tie". It is often deduced from this that the marriage tie is in the hands of the husband, keeping in mind the common concept that only the man has a right to divorce. But in our viewpoint this deduction is not correct. We shall elaborate on that later. According to the Holy Quran the right to divorce belongs equally to the man as well as to the woman. Here the meaning of

the words can mean the woman's agent in the court of law, or the court of law itself. (See also chapter on 'Talaq'-Divorce).

f) If a woman is guilty of immodesty, something can be deducted from her dower: (4:19) "O you who believe! (As has been said in 4:3, that a man should exercise his choice in marrying a woman likewise the consent of woman is also necessary for marriage). You are forbidden to become masters of women forcibly (against their will, nor is it justifiable for you to keep them against their will with the intent of bargaining to recover a part of what you have paid them; this is not permitted except where they have been guilty of open immodesty". (In such a case the court can allow you a part of it).

It is apparent that a case like this can only be decided by the law-court.

g) If a woman demands divorce (and the court of law agrees), she shall have to pay something for it (2:229); it may not necessarily be out of the dower money. (This is only for reference sake; details shall come under the heading 'Divorce').

Note: (Dowry __ the paraphernalia of a bride __ is merely a custom which has not been ordained by the Quran. It is extremely unfair on the part of man to demand 'Jahez' (dowry). The Quran has ordained man to give something; not to take anything from the woman. (This is a HINDU custom which Muslims have appropriated!).

13. MAINTENANCE.

a) As has been stated earlier, the provision of sustenance of the wife is the responsibility of her husband (4:34). Therefore as long as she remains in his wedlock, he shall be responsible. This includes the place of residence as well.

b) During the waiting period of a divorced woman i.e. during Iddat, the above stated responsibility shall lie on the husband [(2:241); (65:1); (65:6-7)] except when she is guilty of immodesty (65:1). (Details shall be found under the heading "Iddat" _ waiting period of a divorced woman).

c) As regards a widow, the responsibility for her maintenance still lies on the man for a period of one year. Therefore he ought to leave a will for her; but this responsibility remains no more if and when she leaves the home of the deceased husband of her own free will. (Details shall be given under the heading 'Inheritance').

14. STRAINED RELATIONS.

i) As described earlier, the object of marriage is to lead a life full of love and tranquillity; thus a careful selection of partners is an utmost necessity. Yet circumstances may arise when mutual relations become strained. In some events unpleasantness may be temporary, owing to tempers being volatile; for example, a person, while angry, begins to talk absurdly or on account of ignorance, calls his wife "mother", or anything like that; this is termed "Zihaar" in technical terms; and when the rage cools down he feels ashamed. The Quran says that such foolish talk and oaths should not be taken seriously. (2:225) "Allah will not call you to account for absurd oaths, but you will be accountable for such oaths that are taken with the intention of your hearts. (Also 5:89) By calling your wife 'mother', she does not actually become your mother: (33:4) "Nor has He made your wives, when you express so by 'Zihaar', your mothers". Such foolish behaviour makes family atmosphere venomous. The Quran, therefore, considers it necessary to penalise such behaviour. In such cases before the resumption of sexual relations, the Quran ordains (a) freeing a slave (this relates to the period when slaves were present); (b) if slaves are not found, fasting for two months; (c) if one lacks endurance (for fasting for two months), then feeding sixty indigents. In Surah 'Mujaadilah' it is said: (58:3-4) "But those who call their wives mothers (or something like that), then wish to go back on the words they had uttered, (it is ordained that such a one should free a slave, before they copulate. To this you are exhorted; and Allah is well acquainted with (all) that you do. And if anyone who has not the means, he should fast for two months consecutively, before he copulates. But if one is

unable to do even that, he should feed sixty indigent ones: this is to ensure that you do profess (Eemaan), a firm belief in the Divine System which has been established by the Rasool."

It is essential for a believer to keep himself bound by the limits laid down by Allah. (In case one makes a mistake, its compensation lies in the steps described above). But the people who reject these limits are non-believers and there is a tormenting chastisement for them.

ii) The above relates to absurd oaths while in a state of anger. But if someone willfully takes an oath, not to go to his wife (the term EELA is used for it in Arabic). Such a state cannot be allowed to continue indefinitely. The Quran has ordained that such a person should decide within four months whether he wants to keep his wife in wedlock or not: (2:226-227) "For those who take an oath of abstention from their wives, a waiting period of four months is ordained (because a woman cannot be left in this condition for an unlimited period). If then they return (to their ordinary life), they are allowed, because a room has been left for forgiveness and protection in such falterings [(95:89); (33:4); (58:3)]; i.e. like penalty for breaking an oath. But if their intention is firm for divorce, they should proceed in accordance with the Divine Law, which is from Allah Who is All-Hearing, All-Knowing. He knows that separation is the better course in such cases."

An Islamic state can formulate necessary laws for those who do not want to keep their wives with them or for those whose whereabouts become unknown. The aim is to provide protection to the rights of a woman and not to leave her entirely at the mercy of her husband.

15. DIVORCE.

'Nikaah' is a contract between a sensible and mature man and woman to lead a married life. The Quran provides such instructions under which this contract is fulfilled with beauty and proportion, because the social life of a nation depends on agreeable and favourable environments within the home itself. This forms the basis for the proper up-bringing of a nation. But if in

spite of all that, occasion arises when it becomes impossible for them to live together, the Quran allows separation, after the dissolution of the contract of marriage. This act is called Divorce. (Keep in mind this meaning of the word divorce). The case of marriage was left to the mutual consent of both parties on account of its being a personal affair, but the dissolution of marriage remains no more a personal affair because it affects the opposite party as well as their offsprings in most cases. Thus it becomes a collective society affair, for which instructions have been laid down by the Quran. There is one thing in this case which is important and which needs clarification: whereas mutual discretion of both parties was essential for marriage, as such the dissolution of marriage cannot take place by the consent of one party alone. The husband cannot be allowed to declare "Divorce, Divorce, Divorce" of his own free will whenever he so likes and turn his wife out from the house; while on the other hand the other party (wife) be made so helpless that she is compelled to bear many hardships in order to be able to get rid of this commitment. The Quran has ordained equal rights and obligations for a husband and a wife; their position is equal in this respect also. Let us look at the instructions it gives to society. It says: (4:35) "If you fear a breach between them (the couple), the concerned authority should constitute a board of arbitration consisting of two members, one from his family and the other from hers. Thus if the husband and the wife make up their minds for reconciliation, the two arbiters should attempt to bring them close to each other. The Divine Law shall bring about reconciliation because the law is based on Allah's Knowledge, Who is acquainted with all things."

The term includes both man and woman. The complainant may be the man or the woman; in both cases it is the duty of society to appoint an arbitration board.

If the woman feels an excess or disinclination from her husband, even then they try to patch up their differences amongst themselves or ask for a board of arbitration to be appointed. Thus it said: (4:128) "And if a woman fears ill-usage from her husband or desertion, no blame is on them if they effect a

reconciliation between them for amicable settlement is always good", (or otherwise ask for the appointment of a board of arbitration).

In Surah 'Al-Mujaadilah' (58th Chapter of the Quran) it is said: (58:1)

"Allah has indeed heard the woman who was disputing with you concerning her husband, and complaining to Allah (about the maltreatment she was receiving at the hands of her husband) and Allah was hearing the contentions of both of you. Surely Allah hears and sees (all things)."

This also makes it clear that a woman can take her case to a court of law and has full right to apply for divorce; however, the first priority of the court of arbitration shall be to bring about reconciliation between them.

Remember, the Quran has used the term "Talaaq" (Divorce) both in respect of the husband and the wife. The term "Khul'ah" (divorce obtained by a wife against a ransom by herself or through an attorney) is nowhere to be found in the Quran. Moreover, when it is said that a husband has delegated his right of divorce to his wife this is not correct; according to the Holy Quran because husband and wife have equal rights of divorce. Delegating the right of divorce by husband ("Tafweez" in juristic terminology) makes no sense.

If reconciliation cannot be brought about, the court which has convened the board of arbitration shall declare dissolution of marriage. This shall be known as Divorce. It is said in Surah At-Talaaq (65th Chapter of the Quran): (65:1) "O Rasool! When you pronounce decisions on divorce cases, tell the people concerned that after this (the divorce) the issue of 'counting period' (Iddat) is a matter of great importance and must be completed."

The Rasool has been addressed in the verse (65:1) by the words : "When you divorce women". Here the word used is "Tallaqtum" which is plural. Thus the matter does not concern the divorce of any wife of the Rasool himself. Such a question never arose. As a matter of fact it is the status of the Rasool as a judge that is being addressed. Thus the word "Tallaqtum" means: "When you decide the divorce cases of women". It makes clear that

divorce is not an individual affair allowing a man to divorce his wife any time he likes. Such decisions shall only be announced by duly authorised courts. The court first appoints a board of arbitration and if reconciliation fails, then it decrees the divorce.

Because the calculation of the period of Iddat depends upon the number of menstrual periods, the execution of divorce ought to take place after the last menstrual period is over. In the above said verse (65:1) after the words come the words meaning 'to count (accurately)'. The court shall make this point clear in its decision.

If the court finds that the husband does not want a reconciliation, it shall grant a divorce, without taking anything back (of the dower money) from the wife. It is thus said in Surah An-Nisa (4th Chapter of the Quran): (4:20-21)

"If you intend to take another woman in place of your present wife (it does, in no way, mean that the desire to bring in a new wife can become a reason for divorce ____ it only means that if, according to the conditions laid down which were mentioned earlier _ the matter reaches the stage of divorce) and you have given the latter a whole treasure (heap of gold) as dower, you should not take back even a portion of it. (However, if the demand for a divorce was initiated by the wife (2:229) or the wife is guilty of immodesty (4:19), a part can be retrieved from her. In case no such conditions prevail, then you should not slander her or accuse her of open wrong in order to compel her to surrender a part of her dower. How can you do such a thing when your wives have taken a solemn covenant from you, and you also have enjoyed marital relations with each other."

But if the woman is guilty of a shameful act which leads to adultery or fornication, then: (4:19) "It is not lawful for you to try to detain them forcibly so that you may fraudulently take away part of the dower that you have given them, except when they have been guilty of open immodesty."

Or if she herself is unwilling to live with her husband, the court can order some compensation to be paid to the husband. (2:229) "(In case of dissolution of marriage), it is not lawful for you (men) to take back any of

your gifts (from your wives), except when a situation arises that this money is blocking the way to the finalisation of divorce; and on the other hand on account of strained relations, in case of the continuation of their marital relationship both parties fear that they would not be able to safeguard the limits ordained by Allah (in faithfully discharging their obligations) and the society's judicial system also reaches the same conclusion, there is no blame on either of them if she gives something for her freedom from the bonds of marriage."

Such conditions may arise that a woman gets married with ill intentions, and having received the dower money, takes steps to seek divorce. In such cases, forgiving a part of the dower shall serve as a deterrent against such nefarious designs.

After the court declares divorce, the period of 'Iddat' shall begin. 'Iddat' means the prescribed period before the end of which the woman cannot marry again (Details are given under the heading 'Iddat'). It may be termed as "waiting period". During this period (of Iddat), the divorced woman shall continue to reside in her ex-husband's house and he is responsible of her maintenance. What the Quran has said further, in this regard, needs careful attention. It is said in Surah At-Talaaq (65th Chapter of the Quran): (65:2)

"Then when they (the divorced women) complete their appointed term, either take them back in the recognised manner or part from them according to the law."

In Surah 'Al-Baqara' (2nd Chapter of the Quran) It is said: (2:229) "After that either keep them according to the law or separate them with benevolence."

Again it is said: (2:228) "And their husbands have a better right to take them back in that period, if they wish for reconciliation."

It is apparent from the above that during the period of 'Iddat' a chance is given to rebuild the marital relationships. This clarifies two issues:

(a) If the wife is the one to initiate the divorce, then this means she does not want to live with her husband and he then cannot keep her back forcibly. However it is a different thing if she changes her mind.

(b) If it is the husband who initiates the divorce, although she wants to live with him, the relationship can be re-established if he changes his mind. In such an event, the Quran has warned the husband not to keep the wife back with the intention of vexing her: (2:231) "Do not take them back with the intention of causing them harm or to transgress the limits (imposed by Allah). If any one does so, he only wrongs his own self."

The question now arises: is a renewal of the contract of marriage needed, or the previous contract shall be considered sufficient In this respect the Quran has used the term "Bil-ma'roof" which means a procedure recognised by the Islamic Society in the light of the Quranic Guidance. Thus if the Islamic Society thinks that a renewal of the contract of marriage is unnecessary, it shall be the correct decision. And if it decides that a renewal is called for, that too shall be a correct decision. After all, 'Nikaah' (the contract of marriage) is nothing more than the recognition of the consent of a husband and his wife. However, in verse (2:232) the Quran has used the word 'Nikaah', when it is said: (2:232) "When you divorce women, and they are near the completion of the term of their 'Iddat' and both man and the wife are desirous to resume their matrimonial life, O Members of the society! Do not prevent them from marrying their (former) husbands, if they mutually agree.

Here again the word "Bil-ma'roof" is used: which means 'according to the way recognised by the system of the state'. However, the government ought to keep it in mind that the renewal of marriage during the period of 'Iddat' ought to be carried out in a way which may be considered a contract of marriage.

If they have made up their minds to live together again, it shall be carried out according to the above procedure; but if they decide on separation, two witnesses shall be required: (52:2) "Then, when they approach the end of

the term appointed (look at the whole issue in a cool, dispassionate manner and if constancy appears possible, why resort to separation). Get united in a recognised manner; (but if constancy is not possible), part from them on the recognised terms: and take for witness two persons from among you imbued with justice i.e. those who are not inclined to any one party, and establish evidence as a duty ordained by Allah."

After this the facilities available to them (the women) in the period of 'Iddat' shall come to an end.

Thus the husband and the wife may reunite during the period of 'Iddat' or may get separated. This shall be counted as ONE DIVORCE.

If this couple again becomes husband and wife (during or after the period of 'Iddat') but again decide to separate, its procedure shall be the same as described above. This shall be the SECOND divorce.

After this second divorce if they once again decide reunion but this also results in THIRD divorce, they cannot become husband and wife again, neither during the period of 'Iddat', nor any time thereafter because: (2:229)

"A divorce is only permissible twice; after that the parties should either hold together on the recognised terms or separate with kindness."

That is, after the third divorce, remarriage is not permissible.

However, if after the third divorce the woman gets married to some other person but here also the union ends in divorce (or if she becomes a widow), she can again establish the contract of marriage with the first husband. This has been explained as such in the verses (2:229) and (2:230) (2:229-230)

"Remember! During the married life of a husband and wife, it is possible only twice to either hold together on the recognised terms or separate with kindness. [But if the divorce between them takes place the third time, they shall not be able to remarry _ (2:230)] In case of dissolution of marriage, you are not permitted to take back anything of what you have given to the

wife. However, if an occasion arises that this very factor becomes an impediment in the way of dissolution of marriage and at the same time there is an apprehension that in case of living together as husband and wife they shall not be able to keep the limits laid down by the Divine Law, on account of their deranged relations; and also the society's system of justice reaches the same conclusion that the husband ought to get some recompense, in that case there is no harm that the wife may agree to forego a part of what is rightfully hers and get herself rid of the martial contract. These are the limits imposed by Allah; do not transgress them, and whosoever does so, would be held guilty by the Divine Order.

"So if a husband divorces his wife (irrevocably) he cannot, after that, remarry her until after she has married another husband and he has divorced her. In that case, there is no blame on either of them, if they reunite, provided they feel that they can keep the limits ordained by Allah. Such are the limits ordained by Allah, which He makes plain to those who possess the knowledge of the exigencies of social life."

These are the verses which are produced as an evidence to prove that if somebody says 'Divorce, Divorce, Divorce', three times, they shall have to go through the process of 'Halaalah'. This interpretation of the above verse is against the Quran. As explained earlier, divorce means freedom from the contract of marriage. The dissolution of marriage can take place only by following the details described above. Divorce does not become valid by the verbal utterance of the word 'Divorce' whether it is repeated once, thrice or a hundred times. Three divorces mean the dissolution of Nikaah between a husband and his wife, three times during their married life spread over a period of time. After two dissolutions there still remains a chance for reunion; but after the third dissolution there is no chance: it is final, except under the condition described above. Even in that case marriage with another husband does not mean sexual intercourse for one night (Halaalah); it means to live the life of a husband and wife in a regular normal way.

As it has been said earlier, the dower ought to be paid during the process of marriage contract. But if the wife has postponed its receipt for a later

period, it shall now become an urgent recovery after the dissolution of the marriage. (See heading 'Dower')

16. WAITING PERIOD FOR A DIVORCEE (IDDAT).

(a) 'Iddat' is the name given to a period in which a divorced woman or a widow cannot remarry. In fact it is meant to make sure if she is pregnant; and in case of pregnancy, the would-be child shall be the legitimate offspring of the former husband. There is no 'Iddat' for man. The Quran says: (2:228)"Women have the right relative to their obligations, but men have an advantage over them". The advantage is that there is no 'Iddat' for man. He can marry another woman immediately after divorce.

b) The 'Iddat' for a divorced woman is three menstrual periods (2:228). The divorce comes into effect after the menstrual period comes to an end. This is for the sake of certainty in the counting of 'Iddat' (65:1).

c) For old women who have reached menopause or for those who do not menstruate on account of a disease, 'Iddat' shall be three months:(65:4)

[As stated in verse (2:228) __ the period of Iddat, normally, is three menstruations, but] "such of your women as have attained the age of menopause, for them the prescribed period is three months; and for those who have no courses, (on account of disease) it is the same".

d) 'Iddat' for a pregnant woman is until the termination of pregnancy. (65:4)
"For those who are pregnant, 'Iddat' is until they deliver (their burdens)."
They should declare, in the event of divorce, that they are pregnant: (2:228)
"Nor is it lawful for them to hide what Allah has created in their wombs."

e) There is no 'Iddat' for a woman who is divorced before sexual intercourse: (33:49) "O You who believe! When you marry believing women and then divorce them before you have touched them, it is not required of you to count the Iddat in respect of them (during which period the responsibility of their sustenance lies with you and the women cannot marry any other husband), so give them suitable provision and part from

them in a goodly manner". [Marriage is a contract. When you find it difficult to carry out the contract, end it in a lawful manner. There is no need to create bitterness __ (2:228-236); (65:1-4)].

f) 'Iddat' for a widow is four months and ten days. (2:234)

"If any of you dies and leaves his widows behind, they shall wait for four months and ten days (for second marriage). When the 'Iddat' ends, they are free to make a decision about themselves according to law. They have the right to do so. There shall be no blame on them that they have done this way or that way. Remember, Allah knows all that you do."

In case she is pregnant, there is no separate injunction in the Quran for it. But it can be deduced from the injunctions regarding divorced (pregnant) women, that their Iddat shall also be until they give birth.

g) During the period of 'Iddat' the responsibility for providing daily requirements and shelter shall be on the man and its standard shall be the same as during normal life. It is said in Surah At-Talaaq (65th Chapter of the Quran): [(65:6-7); (2:241)] "Let the women live (during 'Iddat' period) in the same style as you live, according to your means; annoy them not so as to tease them. And if they are pregnant, you have to provide their sustenance until their delivery, and if they suckle your (offspring) for your sake [i.e., if you cannot make any arrangement for the suckling and by mutual consent it is settled that she herself shall suckle], give them their due recompense, and enjoin one another to do good; and if you disagree, another will suckle for him."

In determining the scope of providing sustenance to divorcees or compensation for suckling, be considerate of the financial status of the husband. Let the man of means spend according to his means: and the man whose resources are restricted, let him spend according to what Allah has given him. Allah puts no burden on any person beyond what he has been given. If a difficulty arises for the man on account of the extra expenses, a relief can be obtained according to the Divine Law. (The court shall keep this in view).

But if during this period the woman commits an act of immodesty, the man then, is no more responsible. (65:1) "O Nabi! When you decide the cases of divorce, tell the people that the matter of 'Iddat' is of great importance. It must be accomplished adequately. For this, it is necessary that an accurate count of the prescribed period be kept, so as to submit totally to the injunctions laid down by your Sustainer (2:228-236; 33-49). During this period do not turn out the divorced women from your houses (65:2)."

During the period of 'Iddat' these are still their own homes. Nor shall they (themselves) leave without a proper excuse. However, in case they are guilty of some open immodesty, they can be turned out of the house. These are the limits laid down by Allah, and any one who transgresses the limits of Allah, besides doing wrong to others, he also wrongs his own self.

As stated above, the woman should not leave home and go to some other place during Iddat. But if conditions are not favourable to stay there, she can stay at some other place by permission of the court. This is our deduction from the Quranic verse, in which it is said: (4:130) "And if they separate, Allah will render them both free from want out of His ampleness". Allah shall make arrangement for the fulfillment of their needs, i.e. the society (established under the Divine Order) shall shoulder this responsibility.

h) For one year's provision of daily needs and residence, the husband should leave a testament. But if before this, the widow leaves, of her own choice to some other place, this responsibility (of the late husband) comes to an end: (2:240) "Those of you who die and leave widows, should make a bequest for their widows for a year's maintenance and residence, but if they leave (the residence) of their own and make some other arrangement for themselves according to the law, there is no blame on you for what they do with themselves. Remember! The Divine Law is exalted in power and is based on wisdom."

i) During 'Iddat' a widow is not allowed to marry another person but there is no restriction on discussing the possibility of marriage in the meantime:

(2:235) "There is no blame on you if you make an offer of betrothal or hold it in your hearts. Allah knows that you would fancy to marry them: but do not take any hidden promise of marriage from them, negotiate with them in a recognised manner, but do not resolve on marriage during the period of Iddat: and always remain conscious of the fact that Allah is aware of the ideas that flash across your mind. You should know that Allah does not want to inflict any hardship on you by means of these limitations. The object of these restrictions is to protect your society from the injuries of wrong attitudes. He does not get angry by your mistakes, so as to entangle you in strict laws. This is done by tyrant rulers, not by Allah.

If (during 'Iddat' or afterwards) a woman intends to re-marry her former husband, do not stand in her way: (2:232) "When you divorce women and they are nearing the completion of their Iddat do not prevent them from marrying their former husbands if they mutually agree to do so in the recognised manner."

Note: This does not apply after the third divorce).

17. SUCKLING.

The Holy Quran does not specify the period during which the mother should suckle the child. The husband and the wife can mutually take a decision subject to the requirements of the child's health. However, the Quran has said that it takes two and a half years for a mother to keep the foetus in her womb followed by the suckling of the child. (46:15) "We have enjoined upon man to be gracious to his parents: in pain did his mother bear him and in pain did she give him birth. The carrying of the (child) to his weaning is a period of thirty months."

Even animals take part in the upbringing of their offsprings; but later on, their grown up offsprings do not even recognise their parents. Thus the man is asked to rise above the animal level during his life. "One of the demands of human life is that he should treat his parents with benevolence. His mother bore him and gave him birth with difficulty which she

experienced day and night. This continued not for a day or two but it took at least thirty months from pregnancy to weaning. [(2:233); (13:14)].

At another place the suckling period is described as two years: (31:14) As regards a divorced woman who carries a child in her lap, the Quran says:

i) The father of the child shall give the mother recompense for suckling the child. (65:6) "And if they suckle the offspring for you, give them their recompense and take mutual counsel together according to what is just and reasonable. If any of you feels that the arrangement is heavy on him/her, arrange for some other woman to suckle the child."

ii). Though the period of suckling is two years, but if by mutual consent they want to reduce this period they are allowed to do so.

During the period of suckling, the expenses of food and clothing shall be provided for the woman by the father of the child. The standard of this maintenance shall be according to the financial position of the father. For so doing, it ought to be kept in mind that neither the father nor the mother are put in to difficulty for the sake of their child. If it is thought advisable that the suckling be given by some other woman in place of the mother, it is permitted: (2:233) "If, in the case of a divorce the wife is suckling a child, the mothers should give suck to their offspring for two whole years, if the father desires to complete the term. But he shall bear the cost of their food and clothing on the prescribed terms. No person shall have a burden laid on him greater than he can bear. (The court ought to keep this mind): the mother shall neither be treated unfairly on account of her child nor the father. (If however, the father dies in the meanwhile), his heir shall be incharge in the same way as had been decided by both of them. On the matter of weaning; if you both agree on premature weaning and make alternative arrangements, there is no blame on them provided the husband pays the settled compensation to the mother."

(Anyhow) you should always adhere to the Divine Law and keep this reality in mind that Allah's Law of Requital oversees what you do. (For this' neither observe the law as a mere custom, nor try to evade it).

18. CUSTODY (OF CHILDREN OF DIVORCED PARENTS).

There is no specific injunction in the Holy Quran as to who will have custody of the underage children after the separation of their parents. The court can decide on it according to the prevailing circumstances. The principle that ought to be observed in this case is that neither the father nor the mother shall be put to unnecessary hardships. An inference can be drawn for this rule in the light of verse (2:233) described above. To achieve this objective the Islamic Government shall also decide as to who shall bear the expenses of the children, till they reach the age of maturity.

19. PROGENY.

a) Besides mutual companionship the basic object of married life is the augmentation of the human race. Even animals increase their progeny, but the case is different with man. A young animal needs nourishment, after which it becomes what it is destined to become. But a human child, in addition to sustenance, needs education and upbringing which lifts him from the stage of animal life to the stage of human life. Thus the parents undertake a dual responsibility. It is the duty of an Islamic State to frame laws for the purpose and make such arrangements that no child is deprived of sustenance, as well as education and upbringing. The Islamic State shall issue necessary guidance to the parents as to what extent their co-operation is required. The objective is that no child is left without the development of his human potentialities on account of negligence, ignorance, laziness, or mismanagement on the part of parents or an incompetent system of government. Every child shall be provided with an equal opportunity for upbringing. The Quran says: (17:31); (6:152) "Do not kill your offsprings for fear of being reduced to poverty."

Here killing does not actually mean putting to death. (Murder in itself is a crime, even if it is of one's own children). Here killing children means depriving them of proper education and upbringing. In this regard an Islamic State shall furnish surety that: (6:152) "We are responsible for your sustenance as well as that of your children."

Remember in an Islamic Social Order, providing the means of sustenance is the foremost duty of the State.

b) A healthy, sound and sturdy child is a bounty from Allah (7:189-90) and an intelligent and a chaste youth, with a loving heart and subservient to the Divine Laws, is a 'Rahmat' from Him (19:12-14). In Surah 'As-Shoora' (42nd Chapter of the Quran) it is said: (42:49-50) "Allah is the Supreme Sovereign in the heavens and the earth, and the whole system of the universe functions under His Laws only; so much so that even the physical life of man is not excluded from its ambit. The astonishing Order of Creation including creation of man is controlled by His Laws. According to this Law He bestows some with girls, while others with boys and yet some with both boys and girls and some remain childless. All this takes place according to His Laws. He is replete with knowledge and full of power to control the destinies according to His measures and standards."

Thus whereas the creation of sex is controlled by the Divine Laws, to consider a girl inferior to a boy was a mentality peculiar to the Arabs of pre-Islamic days. Islam eradicated this. The Quran criticises it as follows: (16:58-59) "When news is brought to one of them of (the birth of) a female (child), his face darkens and he is filled with grief. (He thinks the birth of a female child so disgraceful that) he hides himself from his people because of the bad news he received. He begins to think whether he should suffer this contempt or bury the new born alive in the dust Ah! What an evil choice they decide on their innocent girls!"

c) Wives and children have been made means of elegance in life by Allah; thus they are worthy of the parents' kind attention: (3:13) "Love for women and children has been made fair-seeming for people."

Yet one must not commit any act for their sake, which goes against the Divine Laws and the Permanent Values ordained by Allah. (See 63:4; 8:28; 64:14-15). If one does that it becomes a sedition for him. Thus whenever there is a tie between a particular benefit for the wife and children on the

one hand, and a Quranic Value on the other, the Quranic Values shall be given preference:

It is said in Surah "At-Taubah" (9th Chapter of the Quran); (9:24) "(O Rasool)! Say unto these people that if it be that your fathers, your sons, your brothers, your spouses or your kindred, or the wealth which you have gained, the commerce in which you fear a slump, or the dwellings in which you delight, are dearer to you than Allah and His Rasool (i.e. dearer than the establishment and maintenance of the Divine System); wait until the results of such a behaviour become manifest unto you according to the Divine Law. Remember Allah guides not those who, leaving aside the right path, go astray."

It is so, because offsprings relate only to the physical life of man, they have no value against the Divine Law: (58:17) An unrighteous offspring is not even considered a member of one's family by the Quran. This has been explained in the story of Noah in (11:45-46).

d) As long as the children are under the care and upbringing of their parents, they should act under the parents' guidance, but when they are capable of deciding their own affairs they should begin to act as such. The maxim "To obey the parent is a duty" that has not been ordained by the Quran. The Quran has repeatedly asked only to do good to the parents (4:36).

The Quran states: (36:68) "If We grant long life to any, We reduce him to an abject state in creation". Man begins to forget what already was in his knowledge. (16:70) As such his condition becomes pitiable. Therefore he shall be treated gently and not rebuked. Thus it is said in Surah Bani-Israel (17th Chapter of the Quran): (17:23-24) "Thy 'Rabb' has decreed that you should be subservient to none but Allah: (be subservient only to the Divine Law). Further it is ordained that you be kind to parents, whether one or both of them attain old age in your life. Say not to them a word of contempt, nor repel them, but address them in terms of honour. When they were youthful and active, they provided you with sustenance (in addition to their own);

now they have become old and are not capable of earning. It is your duty to make good their deficiency."

Give them protection with all the affection (as they did when you were young) and say: my Rabb! Enable me to provide them with means of nourishment as they had cherished me in my childhood.

(To look after the young is even practised by the lower animals, but the practice of looking after the parents in old age is peculiar only to a human being. That is why he has been instructed as such.)

But if the parents are following a wrong path, it must be brought to their notice. This has been made clear in the story of Abraham: (19:41-45)

e) It is essential for an Islamic Government neither to leave the small children at uncared for the mercy of their parents, nor to leave the aged parents uncared for and dependent on their offsprings to the extent that they become the object of scorn and degradation. For this an Islamic State ought to provide proper guidance and make the necessary arrangements.

20. Orphans.

The basic meaning of the word "Yateem" (orphan) is the one who somehow or other is left alone and helpless in society; he may be of any age. But in the context of the subject under discussion, "Yateem" shall mean the children whose father (or both parents) have died. The provision of sustenance, education and upbringing of such children is the responsibility of an Islamic State. But the question is not of upbringing alone: the real problem is that they should be brought up in such a manner that the dignity of their 'self' does not get injured. To keep such children in orphanages, fed on charity, is the destruction of their human 'self'. This leads to the downfall of nations. In Surah 'Al-Fajr' (89th Chapter of the Quran) it is said that one of the reasons for the destruction of nations is that they do not treat orphans with honour: (89:17) . Thus the real question is the cultivation of their self-respect. They should not be brought under undue pressure: (93:9).

A satisfactory arrangement for their proper nurturing is essential. They should be treated as your own brethren: (2:220) "They ask thee about orphans. Say: settling their problems is a deed that produces 'good'. Hence you live together and if during the period of mutual living you have but to conduct their affairs with your own, always keep in mind that they are your brethren. Allah knows which of you means their good and which of you creates mischief. You are being given such instructions because without it you could have fallen into difficulties; but Allah wants to make things easy for you."

This provision of facilities does not mean that you go on doing what you like without any hindrance.

Allah's Law of Requitat is exalted in power, yet it is based on wisdom.

Their wealth and property, if there be any, must be protected with utmost care. The one managing their affairs, if he is wealthy enough, should not take any remuneration; but if he is needy, he can take compensation for it. When they reach the age of maturity and they become capable of handling their own affairs, their wealth and property should be handed over to them in the presence of witnesses: (4:5-6) "Remember! Allah has made wealth, the mainstay of a nation's economy, therefore place it not in the custody of those who are weak of understanding; feed them and clothe them therewith and speak to them words of kindness and justice."

Also make arrangements for the upbringing of orphans; and keep checking as to how far their potentialities are developed, until they reach the marriageable age. (6:153; 17:34; 40:67). If then you find them of sound judgement, deliver their property over to them. [But if they are not fit for it yet, act according to (4:5)]. But in the meantime do not consume their property wastefully, nor in a haste, fearing that they shall demand it when they become grown up. If the guardian is well off, let him claim no remuneration, but if he is poor, let him have what is just and reasonable. When you release their fortune to them, take witnesses. While counting, keep it in mind that you are submitting the account to Allah who knows

what is hidden as well as manifest; therefore He is the Best of all those who take account.

This point has been emphasised further in (6:153) and (17:37).

Do not take a single pence from their wealth unlawfully. It has been ordained in Surah An-Nisa (4th Chapter of the Quran): (4:2) "According to this law no difference remains between your own children and the orphans, therefore take care of their rights and benefits like those of your own offsprings. Keep their property safe with utmost care; do not exchange (your) worthless things for their good ones; do not eat up their assets, keep their assets separate from yours; embezzlement in their substance (by mixing it up with your own) is most unjust. One who is left alone in the society, he ought to be helped rather than his rights usurped."

It is said further: (4:10) "Those who unjustly eat up the property of the orphans, they are filling their bellies with fire which leaves their passions of greed ablaze". They being always dissatisfied, run after unlawful wealth like a lunatic and thus put their own potentialities into a blazing fire.

If widows and orphans are left behind in society, marrying more than one wife may be allowed by making exception to the law of monogamy, in order to give them a respectable place in society. (Details were given earlier).

For an Islamic State it is essential to frame necessary laws under the guidance of the Quran. According to the Arabic dialect, a boy is called "Yateem" (orphan) till he reaches the age of maturity; and a girl continues to be called an orphan till she gets married. Even widows can be included in the category of orphans. (4:127).

REMOVAL OF A MISCONCEPTION

The injunctions and guidance for family life as stipulated in the Quran have been stated, but the conventional meaning of a verse in Surah 'Nisa' (4th Chapter of the Quran) remains yet to be corrected. The verse is as follows: (4:34) It is usually translated thus: "Men are the masters of women because Allah has given superiority to one over the other; for the reason that they

spend their money. Then those women who are pious and thus obedient, look after what Allah has protected in them in the absence (of their husbands) with the protection of Allah, but those who are feared to be of bad temper, you advise them, keep their beds separate and beat them. After this if they obey you, do not seek a way to accuse them. Allah is indeed the Greatest". (Translation by late Maulana Mahmood Al-Hasan).

By virtue of this translation the following is deduced:

- o Men are the masters of women.
- o Pious women are those who are obedient to their husbands.
- o If a women is not obedient to her husband:
 - i) the husband shall advise her and if she is still disobedient,
 - ii) keep her separate from his bedroom (which means discontinuation of conjugal relations); and if she is still disobedient,
 - iii) beat her.

It is obvious that this sort of relationship between a husband and his wife goes against the very grain and purpose of the teachings of the Quran which have been explained in the previous pages. As a matter of fact, the purport of this verse is as follows:

"As far as the natural duties of men and women are concerned, some of their capabilities are different from each other. In some of them men have the superiority, and in others, the women. As a result of the execution of these duties, for a major portion of her time a woman becomes incapable of earning her livelihood and thus it becomes the duty of her husband to provide her means of the necessary sustenance. This is what is meant by the words . After such arrangement, the women can give full time, satisfactorily, to their own duties (such as bearing the children and their upbringing) so the women are required to take care of their latent potentialities. But if an occasion arises that in spite of all this a woman

revolts and refuses to carry out her specific functions without any sufficient cause, it shall not remain a personal affair. It shall become a collective national issue, because it concerns the protection and augmentation of the (human) race. Thus society should first admonish such a woman. But if this procedure remains ineffective, her husband should be asked to terminate copulation with her for a while so that its psychological effect may bring about a change in her attitude. But if that also remains ineffective, a court can order even physical punishment for her".

You must have noticed that this matter concerns the collective life of a nation and it is of great importance. In this respect if women refuse to co-operate and thus rise against the collective benefit of humanity, it becomes imperative for society to take adequate steps to put a check on this revolt. It is a social crime for which even punishment can be given. But that does not mean that men are free to beat the women on account of being their masters. This concept is utterly un-Quranic.

* In this verse it is said that the right of man is superior. For this see the heading "Iddat".

Testament

1. It is enjoined (directed, ordered) upon every Muslim to make a testament as regards his bequest before he dies. The last will ought to cover the entire property and all persons to whom he wants to give something without any distinction of heir or non-heir: (2:180) "It has been enjoined upon you that when you approach death and you are leaving behind your personal property, make a testament according to law for your parents and others close to you. This has been enjoined upon Muttaqeen as a duty from Allah. (The distribution of left-over property shall take place after the provisions of the 'will' have been fulfilled (4:11))."

Note that this verse starts with the words "you are commanded" and ends with the words "that it has been made incumbent upon those who guard the Divine Law". Moreover the 'will' shall be for the entire property. The verse

also clarifies that the 'will' can also be made for parents and near relatives and also for non-relatives; whom the testator considers nearer to himself.

2. The Quran has given so much importance to the making of will that even (minute) details for it have been prescribed. The following verses of Surah Al-Maaidah (5th Chapter of the Quran) invite pondering: (5:106-108) "O you who believe! When death approaches any of you, take witnesses amongst yourselves while making testament; two just men of your own (brethren); or others from outside, if you are journeying through the land and your own men are not available and the chance of death befalls you.

Afterwards when witnesses are needed, your judges shall detain them (in the mosque) after prayers (because mosques are your court-rooms). If you doubt their truth, let them both swear by Allah: we wish not to take in this any worldly gains, even if the beneficiary be our near relative; we shall not hide evidence before Allah; if we do, we shall become censurable.

If after the witnesses have been recorded, it is found that they have deviated from the truth, two witnesses from among those against whom the witness has been given should come forward and upon an oath in the name of Allah, state that their statement is truer than the previous witnesses and that they shall not deviate a bit from the truth and if they do, they shall be liable to censure.

In Divine Law witness over witness is allowed, so as to make certain that they speak the truth. By so doing, the first two witnesses shall fear that in case they give false evidence, the other two witnesses shall prove it to be wrong and thus they shall become guilty of the perjury and this shall also bring them shame in society.

It is necessary for you to remain conscious of the Divine Laws and do not forget that, deviating from the course set out by Divine Laws and treading upon some other course, it shall not lead you to the goal.

It has been strongly emphasised that the witnesses shall not make a change in the contents of the testament: (2:181) "If any one changes the

content of the will after hearing it, such people shall be guilty in the eyes of law and they ought to know that Allah hears and knows everything."

It is further stated that: (2:182) "But if any one fears partiality or wrongdoing on the part of the testator, and thinks that he is inclined towards someone unjustly, he should advise the testator to do the right thing and bring about compromise between (the parties concerned) so as to protect those whose rights are being encroached. There is no wrong in doing so. To make a room for it in the Divine Law is clemency (Rahmat) from Allah."

But it is obvious that this shall only be an attempt for making compromise, otherwise the final word shall be that of the testator.

3. In the case of a widow, in addition to her share in the bequest, it is necessary that providing of maintenance for a year be included in the will: (2:240) "Those of you who die leaving widows behind should bequeath that their widows be provided a year's maintenance and not turned out of their houses. But if the widows leave (the residence) and make some other lawful arrangements for themselves, there is no blame on you for what they do. Remember that the Divine Law is very powerful, yet it is based on wisdom."

Inheritance

The injunctions for inheritance are given collectively in two verses of Surah 'An-Nisa' (4th Chapter of the Quran). It seems proper to begin with both the verses quoted together and then describe their details afterwards: (4:11-12) The law of inheritance is made clear in the light of these verses. In it the offspring is given the first place; and for it, Allah has ordained:

1. " portion of all of them together shall be $\frac{2}{3}$; if it is one girl, the portion shall be half. It means that if there are no boys and the heirs are only girls, their portions shall be divided as above.

3. For parents, one-sixth share ($\frac{1}{6}$) of the inheritance to each, in case the deceased left children as well. If no children are left and the parents are the only heirs, the mother's, share shall be $\frac{1}{3}$ and the father's share shall be

2/3. If the deceased left brothers and sisters, the mother's share is 1/6 (Read it in combination with item 5). As regards your children's (inheritance), to each boy a share equal to that of two girls, i.e. one girl = 1/3 and one boy = 2/3; [that is because a male is responsible for the maintenance of the family, not the female]. In the verse the words used are (4:34) i.e. male or female. It means, where Allah Himself has not fixed up the portions and both males and females are included among the heirs, this very principle shall be applicable, i.e. man's share being twice that of a woman.

2. If the girls are two or more than two, the

Remember that this distribution in all cases shall take place after the fulfillment of the will and the payment of debts against the deceased. If the will does not cover the entire property of the deceased or the deceased has not left a will, the distribution of the left-over property shall be according to what has been stated above. This is because you do not know whoever from among your parents or offspring is closer to you in matter of being beneficial to you, therefore Allah Himself (Who knows all) has fixed their shares. It means that although the deceased had the knowledge as to whoever was more deserving (the reason, leaving a testament was made incumbent); but since he could not leave a will or his will does not cover the entire property, Allah, instead of leaving the matter to you, has Himself determined the shares.

4. Now we come to the relations through marriage:

i). In what your wives leave, your share is one-half in case she leaves no children; the share of the husband is 1/4 after the processing of the will and the payment of debt against the deceased.

ii) In the bequest of a husband the share of the wife is 1/4, if he has no children, but if he has children, the share of the wife is 1/8 after the processing of the will and payment of debt against the deceased.

5. (See in continuation of item {3} above. If the deceased has no children {known as 'kalaalah'}) but he has parents, brothers and sisters too, then:

- i) If there is one brother or one sister, each one of them shall receive $\frac{1}{6}$.
- ii) If the number of brothers and sisters is more than one, then together they shall be entitled to $\frac{1}{3}$.
- iii) The share of father and mother has been described in item (3).

This shall also be after the processing of will and the payment of debts.

6. If the deceased has neither children nor parents but has only brothers and sisters, the distribution of shares shall be according to verse (4:177) which shall be described later on.

In the light of these injunctions, the following principles of distribution are tabulated:

i) From the bequest of the deceased, first of all his debts ought to be paid and the rest shall be distributed according to his will. Details regarding the will have already been described. There is however, one more (verse) related to it: (4:33) "To every one of the beneficiaries We have appointed shares in the bequest left by parents and relatives; these are not restricted to family lineage only; the in-laws are also included in them; give them their due shares. For Allah is a Witness to all things, including their details."

In this category (relations through marriage), husband and wife come first, because their mutual relationship is through matrimony and not by lineage; then come those with whom a contract was made to pay something. Apparently this contract shall be through a will.

ii) If the deceased left no will or something has been left after the processing of the will, the distribution of this surplus property shall be according to verses (4:11-12).

It is more practicable that the distribution of those shares, which have been fixed by the Quran, ought to take place first and others shall follow later on.

If a surplus is still left after the distribution has taken place according to the above laws, it shall be transferred to the Islamic Government, as is the case with those who die without leaving heirs.

The verse in which the word "Qalaalah" occurs, who leave neither parents, nor offspring is as follows: (4:176) (In the beginning of this Surah in which the law of inheritance were described and in which the word 'kalaalah' was mentioned (those who die issue-less) such a deceased kalaalah was mentioned: who had left parents, brothers and sisters (4:12). "O Rasool! You are being asked to give further details. Tell them that Allah ordains:

If a person dies leaving no parents or children as heirs, the distribution of his property (wealth) shall be as follows:

- o If the deceased is a male and has only one sister, her portion shall be half of his bequest;
- o If there are two sisters (or more), their (combined) share shall be $\frac{2}{3}$ (also see 4/11 for share in case of more than two sisters);
- o If both the inheritors are brothers and sisters, the entire left-over property shall be theirs. The principle of "share of two females equal to share of one male" shall apply (4/11);
- o If the deceased is a woman, the heir of her left-over property shall be her brother.

[This distribution shall take place after the payment of debts and the processing of will (4/12)].

"Thus does Allah make clear to you (His laws) lest you err, and Allah's knowledge encompasses everything."

It is clear from the aforesaid verses that KALAALAH (issueless deceased) can be of two kinds: (i) those who leave parents (ii) and those who do not leave parents.

If at the time of distribution of the bequest there are such people who have no share in the left-over property, but deserve help, the court can allow them something for their relief: (4:8) "If at the time of division of the bequest, other relatives, or orphans or the poor are present (who have no share in it) pay them also a little out of this (property); but make it clear to them that according to law they are not entitled to anything and what has been given to them is by way of comforting them."

Those who distribute the left-over property, must exercise utmost care: (4:9) "Let those (disposing of an estate) do it correctly according to law and they should keep in mind that if they themselves leave behind helpless orphans, they would never have liked that they be dealt unjustly. Thus they should always keep before them the Divine Law and in such affairs speak words clear and sure."

These are the limits laid down by Allah with which an Islamic State shall frame its by-laws remaining within these hints. "Limits" means the framework within which an Islamic State is legally authorised to make by-laws. These limits are immutable but the by-laws framed within these limits shall be changeable according to the exigencies of the changing times.

That which is ordained by Allah is immutable whereas that which is man-made is changeable.

The inheritance of an orphaned grandson.

As regards inheritance, one important point ought to be kept in mind: we use the word "Waalid" for father only and the word Wald for sons and daughters, but in the Arabic language (and according to the Holy Quran), the word "Wald" includes father, grandfather and all others above (in the line of ascent). Similarly the word "Waalid" includes , sons, grandsons and great-grandchildren, all of them in the line of descent. Keeping in view these meanings of the above words, the distribution of the left-over property can be explained by the following example:

Zaid -> Umar -> Rashid

Here Umar is the son of Zaid and Rashid is the son of Umar. Thus Rashid is the grandson of Zaid. On the death of Zaid his son Umar shall get a share from the left-over property. But if Umar died before Zaid, Rashid shall get the share left-over by Zaid, because he is now the son of Zaid. It means that an orphaned grandson shall get his share from the grandfather. According to the Holy Quran, he cannot be deprived of inheritance.

Similarly on the death of Rashid, his father Umar shall get his share from the left-over property. But if Umar died earlier, Zaid will get the share from the property left over by Rashid (instead of Umar) because he is his father now. The same principle shall apply to grandmother, mother's father, mother's mother, daughter's son and daughter's daughter.

Divine Decree for Inheritance

1. Allah instruct you concerning your children's (inheritance); a male receive a share equal to that of two females. But if they (the children) are women, and are more than (or equal to) two, their share is two thirds of that which he (the deceased) had left. And if there is only one woman, her share is half (of the estate). And for his parents, each one's share is a sixth of that which he left if he had children. But if he had no children, and the parents inherit from him, the mother's share is one third. And if he had siblings, the mother share is one sixth. (These distribution should be done) after the payment of any bequeathals that he may have made or debts (that he may have had). Your parents and offspring-- you do not know which among them are nearest to you in benefit. (These share are) an ordinance imposed by Allah. Indeed Allah is knowing and wise.

Surah-e-Nisa : Verse 11

2. You receive one half of that which your wives leave if they have no child. If they have a child, you receive one fourth of what they leave — after payment of any bequeathals that they had made of debts (that they had). And they receive one fourth of that which you leave if you have no child. If you have a child, they receive one eighth of what you leave — after payment of any bequeathals that you had made of debts (that they had). If

the man or woman whose inheritance is in question has neither ascendants nor descendants, but has a maternal brother or sister, each one of them to receives a sixth; and if they were more then two, they share a third — after payment of any bequeathals that had been made of debts (that are owed), and that are not intended to cause harm (to the legal inheritors). This is a commandment from Allah, and Allah is ever knowing and Tolerant.

Surah-e-Nisa : Verse 12

Inheritance in Pre-Islamic Arabia

- In old customary system only the male agnates (asaba) were entitled to inherit. (Rejected by Law Giver)
- Females were not entitled for any type of inheritance (Rejected by Law Giver)
- Amongst the male agnates there were rules of priority, which determined which of the surviving male agnates were entitled to inherit. (It is likely that this rule of priority is continued in Islam. In Islam son takes priority over the father who in turn takes priority over the brothers who in turn take priority over the paternal uncles.)
- **The Sunni Islamic law** of inheritance is therefore, an amalgamation of the Quranic law superimposed upon the old customary law to form a complete and cohesive system. The rights of the asaba were recognized by the Prophet Muhammad () himself. Abdullah ibn Abbas (RA) reported that the Prophet Muhammad () said, "Give the Faraid (the shares of the inheritance that are prescribed in the Quran) to those who are entitled to receive it. Then whatever remains, should be given to the closest male relative of the deceased." (Sahih alBukhari)
- **The Shia** jurists on the contrary took the view that since the old agnatic customary system had not been endorsed by the Quran it must be rejected and completely replaced by the new Quranic law.

Obligatory Sharer (Ashab al-Faraid)

• Women in this context refers to daughters. The Quran gives the daughter a specific share. In legal terminology the daughter is referred to as a Quranic heir or sharer (ashab al-faraid). The Quran mentions nine such obligatory sharers as we shall see later. Muslims jurists have added a further three by the juristic method of qiyas (analogy). So in Islamic jurisprudence there are a total of twelve relations who inherit as sharers.

Safeguard to the Interest of Women

- "Allah commands you regarding your children. For the male a share equivalent to that of two females." [Quran 4:11] • This first principle which the Quran lays down refers to males and females of equal degree and class.
- This means that a son inherits a share equivalent to that of two daughters, a full (germane) brother inherits twice as much as a full sister,
- Similarly a son's son inherits twice as much as a son's daughter and so on.
- This principle is however, not universally applicable as we shall see later in verse 4:12, the descendants of the mother notably the uterine brother and uterine sister inherit equally as do their descendants.
- "If (there are) women (daughters) more than two, then for them two thirds of the inheritance; and if there is only one then it is half." [Quran 4:11]

- If there are any sons the share of the daughter(s) is no longer fixed because the share of the daughter is determined by the principle that a son inherits twice as much as a daughter. In the absence of any daughters this rule is applicable to agnatic granddaughters (son's daughters). The agnatic granddaughter has been made a Quranic heir (sharer) by Muslim jurists by analogy.
- "If (there are) women (daughters) more than two, then for them two thirds of the inheritance; and if there is only one then it is half." [Quran 4:11]
 - If there is only a single daughter or agnatic granddaughter her share is a fixed one-half.
 - if there are two or more daughters or agnatic granddaughters then their share is two-thirds.
 - Two or more daughters will totally exclude any granddaughters.
 - If there is one daughter and agnatic granddaughters, the daughter inherits one-half share and the agnatic granddaughters inherit the remaining one-sixth, making a total of two-thirds.
 - If there are agnatic grandsons amongst the heirs then the principle that the male inherits a portion equivalent to that of two females applies.

Parents and Grandparents

- "And for his parents for each of them there is one-sixth of the inheritance if he has a child, but if he does not have a child and the parents are the heirs then for the mother one-third." [Quran 4:11]

- The Arabic word "walad" has been variously translated as child, son, children and offspring by translators. However, there is universal agreement amongst the Sunni Muslim jurists that "walad" here refers to any child or agnatic grandchild (grandchild through son).

- "And for his parents for each of them there is onesixth of the inheritance if he has a child, but if he does not have a child and the parents are the (only) heirs then for the mother one-third." [Quran 4:11]

- If there is a child or agnatic grandchild amongst the heirs then each of the parents inherits one-sixth.
- In the absence of a child or agnatic grandchild the mother inherits one-third.
- The share of the father is not mentioned under these circumstances. The father in fact inherits as a residuary (a residuary heir gets whatever remains of the inheritance after the Quranic sharers have been allocated their shares, residuary heirs are generally male agnates) under these circumstances.
- To these two Quranic heirs, the mother and the father, the maternal grandmother and paternal grandfather have been added by analogy. The maternal grandmother substitutes the mother in the latter's absence.
- "... but if he has brothers (or sisters) then for the mother onesixth" [Quran 4:11]
- The consensus of opinion is that the word "akhwatun" used in the Quranic text means two or more brothers or sisters of any kind. So that any combination of full, consanguine or

uterine brothers and sisters, if two or more will mean that the mother inherits a one-sixth share.

Husband

- "And for you there is one-half of what your wives leave behind if there is no child, but if they leave a child then for you there is one-fourth of what they leave behind; ... " [Quran 4:12]
- Again according to Islamic law the word "walad" here is interpreted as child or agnatic grandchild.
- The husband, another Quranic heir, inherits one-half in the absence of a child or agnatic grandchild.
- He will inherit one-quarter in the presence of a child or agnatic grandchild.

Husband (Case Study)

- Before continuing with the translation of verse 4:12 let us consider a situation where a woman dies leaving behind a husband and both parents as the only heirs.
- The husband inherits one half of the estate, there is no argument on this point.
- However, if we give the mother a one-third share then the father is left with only one-sixth. Should the male (father) not get twice the share of the female (mother) of equal degree and class?
- This problem arose during the caliphate of Umar ibn al-Khattab (RA). After consultation with the learned companions (RA) the majority opinion was that the father should get twice the share of the mother, that is to say, the principle that the male inherits the

share of two females is upheld. The father therefore, inherits one-third and the mother one-sixth

Widow(s)

- "And for them one-fourth of what you leave behind if you did not have a child, but if you have a child then for them one-eighth of what you leave behind; ..." [Quran 4:12]
- This statement gives us the ruling on the share of the wife (widow).
- The share of the wife is one-quarter in the absence of a child or agnatic grandchild
- Her share will be one-eighth in the presence of a child or agnatic grandchild.
- Two or more wives share equally in this prescribed share.

Kalala Man and Kalala Woman

- "And if a kalala man or woman (one who has neither ascendants nor descendants) is inherited from, and he (or she) has a (uterine) brother or (uterine) sister then for each of them (there is) one-sixth. But if they (uterine brothers and sisters) are more than that then they are sharers in one-third (equally)." [Quran 4:12]
- The interpretation of the second half of verse 4:12 has been a source of controversy, one reason being the meaning of the word "kalala".
- This word "kalala" occurs only in two places in the Quran [4:12 and 4:176] and in both occasions regarding inheritance. "Kalala" may mean "one who leaves neither parent nor child" or "all those

except the parent and child". It is generally taken to mean the former.

Uterine Siblings

- "And if a kalala man or woman (one who has neither ascendants nor descendants) is inherited from, and he (or she) has a (uterine) brother or (uterine) sister then for each of them (there is) one-sixth. But if they (uterine brothers and sisters) are more than that then they are sharers in one-third (equally)." [Quran 4:12]

Uterine Siblings (Same Mother, Different Fathers)

- It is universally agreed that the siblings referred to in the above verse are uterine siblings (those with the same mother but different fathers).
- The uterine siblings only inherit in the absence of any descendants or ascendants. If there is only one uterine sibling he or she inherits a one-sixth share. If there are two or more uterine siblings they together inherit a one-third share equally.
- The heirs mentioned in the Quran (mother, father, husband, widow, daughter, uterine brother, full sister, uterine sister, consanguine sister) together with the three heirs added by juristic method of analogy (paternal grandfather, maternal grandmother and agnatic granddaughter) form a group of heirs called Quranic heirs or sharers (ashab al-furud). These heirs when entitled to inherit are given their fixed shares and the remaining estate is inherited by the residuaries (asaba).

Other Residuaries

- Under Islamic law some of the Quranic heirs, namely the father, paternal grandfather, daughter, agnatic granddaughter, full sister, consanguine sister and the mother, can also inherit as residuaries under certain circumstances.

Primery Heirs

- Certain heirs referred to as primary heirs are always entitled to a share of the inheritance, they are never totally excluded. These primary heirs consist of the spouse relict, both parents, the son and the daughter.

Rules of Exclusion

All remaining heirs can be totally excluded by the presence of other heirs.

There are several rules of exclusion which determine the exclusion of some heirs by the presence of others. In breif the rules of exclusion are as under:

1. A person (e.g. brother) who is related to the deceased through another (i.e. father) is excluded by the presence of the latter,
2. An individual nearer in degree (proximity) to the deceased excludes the one who is remoter within the same class of heirs (son excludes all grandsons),
3. Full blood excludes half-blood through father (so a full brother will exclude a consanguine brother but not a uterine brother).

Prevention by Disqualification from Inheritance

- Heirs may also be prevented from inheriting by disqualification.

1. Difference of religion and
2. Homicide of the deceased.

PAKISTAN FAMILY LAW

Source

[THE MUSLIM FAMILY LAWS ORDINANCE, 1961]

1. Succession.

1. In the event of the death of any son or daughter of the propositus before the opening of succession, the children of such son or daughter, if any, living at the time the succession opens, shall per stripes receive a share equivalent to the share which such son or daughter, as the case may be, would have received if alive.

2. If a Muslim male from Ahl-e-Teshih dies, the share of a widow in the immovable property left behind by her deceased husband shall be as follows:—
 - a. (a) one-fourth share of the fixed price or value of the property, if there is no child left behind the deceased husband; and
 - b. (b) one-eighth share, if there is child left behind.
3. If there are two or more widows, the share, as mentioned in sub-section (2), shall be divided equally among them.
4. The price or value of the property shall be the price or value existing at the time of payment and not the price or value which existed at the time of death of the husband: Provided that if the legal heirs of the deceased do not give the widow her share in the above terms, she shall become entitled to her due share in the corpus of immovable property.
5. A widow is entitled to her share in the corpus of movable property of her deceased husband provided that the provisions of sub-sections (2) and (3) shall mutatis mutandis apply.
6. Fiqah-e-Jafri recognizes right of a husband to get his share from the property left by his deceased wife, either movable or immovable, as follows:—
 - a. (a) one-half share, if there is no child left behind; and
 - b. (b) one-fourth share of the property, if there is child left behind.
7. In case of dispute, the parties or any of the parties may have recourse to a court of competent jurisdiction or by approaching the Mujtahid-e-Alam from the panel maintained by the Council of Islamic Ideology. The decision of Mujtahid-e-Alam shall have a status of an award and the same shall be dealt with in accordance with the provisions of the Arbitration Act, 1940 (X of 1940). Explanation.—The expression “Mujtahid-e-Alam (Faqih-e-Azam)” means a juris-consult, religious scholar or doctor of Shia school of thought well versed with Shariah having international repute and of such recognition. The Council of Islamic Ideology shall maintain a panel of Mujtahide-Alam having aforesaid qualifications. (8) As enshrined in Article 227 of the Constitution of the Islamic Republic of Pakistan, the inheritance rights of Ahl-e-Tashih and matters connected therewith or ancillary thereto

shall be decided according to their personal law interpreted by Fiqah-e-Jafria (Shia school of thought).]

5. Registration of marriages.

1. Every marriage solemnized under Muslim Law shall be registered in accordance with the provisions of this Ordinance.
2. For the purpose of registration of marriages under this Ordinance, the Union Council shall grant licences to one or more persons, to be called Nikah Registrars, but in no case shall more than one Nikah Registrar be licensed for any one Ward.
3. Every marriage not solemnized by the Nikah Registrar shall, for the purpose of registration under this Ordinance, be reported to him by the person who has solemnized such marriage.
4. Whoever contravenes the provisions of sub-section (3) shall be punishable with simple imprisonment for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both.
5. The form of nikah nama, the registers to be maintained by Nikah Registrars, the records to be preserved by Union Councils, the manner in which marriages shall be registered and copies of nikah nama shall be supplied to the parties and the fees to be charged thereof, shall be such as may be prescribed.
6. Any person may, on payment of the prescribed fee, if any, inspect at the office of the Union Council the record preserved under sub-section (5), or obtain a copy of any entry therein.

6. Polygamy.

1. No man, during the subsistence of an existing marriage, shall, except with the previous permission in writing of the Arbitration Council, contract another marriage, nor shall any such marriage contracted without such permission be registered under this Ordinance.
2. An application for permission under sub-section (1) shall be submitted to the Chairman in the prescribed manner, together with

the prescribed fee, and shall state reasons for the proposed marriage, and whether the consent of the existing wife or wives has been obtained thereto.

3. On receipt of the application under sub-section (2), t h e Chairman shall ask the applicant and his existing wife or wives each to nominate a representative, and the Arbitration Council so constituted may, if satisfied that the proposed marriage is necessary and just, grant, subject to such conditions, if any, as may be deemed fit, the permission applied for.
4. In deciding the application the Arbitration Council shall record its reasons for the decision, and any party may, in the prescribed manner, within the prescribed period, and on payment of the prescribed fee, prefer an application for revision, 1 [to the Collector] concerned and his decision shall be final and shall not be called in question in any Court.
5. Any man who contracts another marriage without the permission of the Arbitration Council shall——
 - a. pay immediately the entire amount of the dower, whether prompt or deferred, due to the existing wife or wives, which amount, if not so paid, shall be recoverable as arrears of land revenue; and
 - b. on conviction upon complaint be punishable with simple imprisonment which may extend to one year, or with fine which may extend to five thousand rupees, or with both.

7. Talaq.

(1) Any man who wishes to divorce his wife shall, as soon as may be after the pronouncement of talaq in any form whatsoever, give the Chairman notice in writing of his having done so, and shall supply a copy thereof to the wife 2 [:] 2 [Provided that where the parties belong to Fiqah-e-Jafria,

(a) the man may voluntarily and with his free will pronounce himself or through duly authorized attorney (Vakil) Talaq uttering in literal Arabic words (seegha) in the physical presence of at least two

witnesses qualifying the requirements of clause (1) of Article 17 of the Qanun-e-Shahadat, 1984 (P.O. No. 1 of 1984);

(b) the pronouncement of Talaq shall be ineffective if it is done jokingly or under anger, intoxication, insanity, duress or coercion of any kind and from any corner whatsoever; and

(c) in case of dispute, with reference to clauses (a) or (b) arising due to difference of opinion, the parties or any of the parties may have recourse to a court of competent jurisdiction or by approaching the “Mujtahid-e-Alam” and the decision of Mujtahid-e-Alam shall have a status of an award and the same shall be dealt with in accordance with the provisions of the Arbitration Act, 1940 (X of 1940).

Explanation.—The expression “Mujtahid-e-Alam (Faqih-e-Azam)” means a juris-consult, religious scholar or doctor of Shia school of thought well versed with Shariah having international repute and of such recognition. The Council of Islamic Ideology shall maintain a panel of Mujtahide-Alam having aforesaid qualifications.]

1. [(1A) As enshrined in Article 227 of the Constitution of the Islamic Republic of Pakistan, the divorce and matters connected therewith or ancillary thereto shall be decided according to the personal law interpreted by Fiqah-e-Jafria (Shia school of thought).]
2. Whoever contravenes the provisions of sub-section (1) shall be punishable with simple imprisonment for a term which may extend to one year or with fine which may extend to five thousand rupees or with both.
3. Save as provided in sub-section (5), a talaq unless revoked earlier, expressly or otherwise shall not be effective until the expiration of ninety days from the day on which notice under sub-section (1) is delivered to the Chairman.
4. Within thirty days of the receipt of notice under sub-section (1), the Chairman shall constitute an Arbitration Council for the purpose of bringing about a reconciliation between the parties, and the Arbitration Council shall take all steps necessary to bring about such reconciliation.

5. If the wife is pregnant at the time talaq is pronounced, talaq shall not be effective until the period mentioned in sub-section 2 [(3)] or the pregnancy, whichever be later, ends.
6. Nothing shall debar a wife whose marriage has been terminated by talaq effective under this section from re-marrying the same husband, without an intervening marriage with a third person unless such termination is for the third time so effective.

8. Dissolution of marriage otherwise than by talaq.

1. Where the right to divorce has been duly delegated to the wife and she wishes to exercise that right, or where any of the parties to a marriage wishes to dissolve the marriage otherwise than by talaq, the provisions of section 7 shall, mutatis mutandis and so far as applicable, apply.

9. Maintenance.

1. If any husband fails to maintain his wife adequately, or where there are more wives than one, fails to maintain them equitably, the wife, or all or any of the wives, may in addition to seeking, any other legal remedy available apply to the Chairman who shall constitute an Arbitration Council to determine the matter, and the Arbitration Council may issue a certificate specifying the amount which shall be paid as maintenance by the husband.
2. A husband or wife may, in the prescribed manner, within the prescribed period, and on payment of the prescribed fee, prefer an application for revision of the certificate, 3 [to the Collector] concerned and his decision shall be final and shall not be called in question in any Court.
3. Any amount payable under sub-section (1) or (2), if not paid in due time, shall be recoverable as arrears of land revenue.

10. Dower.

1. Where no details about the mode of payment of dower are specified in the nikah nama, or the marriage contract, the entire amount of the dower shall be prescribed to be payable on demand.

11. Power to make rules.

1. The 1 [2 [Federal Government] in respect of the Cantonment areas and the Provincial Government in respect of other areas] may make rules to carry into effect the purposes of this Ordinance.
2. In making rules under this section, the 1 [such Government] may provide that a breach of any of the rules shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to two hundred rupees, or with both.
3. Rules made under this section shall be published in the official Gazette, and shall thereupon have effect as if enacted in this Ordinance.

12. Amendment of Child Marriage Restraint Act, 1929 (XIX of 1929).

] Omitted by the Federal Laws (Revision and declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

source=(<https://wpc.org.pk/wp-content/uploads/2020/02/The-Child-Marriage-Restraint-Act-1929.pdf>)

- (1) This Act may be called the Child Marriage Restraint Act, 2 [1929].
- (a) “child” means a person who, if a male, is under 18 years of age, and if a female, is under 5 [sixteen] years of age;
- (b) “child marriage” means a marriage to which either of the contracting parties is a child;
- (c) “contracting party” to a marriage means either of the parties whose marriage is 6 [or is about to be] thereby solemnized;
- (d) “minor” means a person of either sex who is under eighteen years of age [;] 8
- [(e) “Union Council” means Union Council or Town Committee constituted under the law relating to local government for the time being in force.]

4. Punishment for male adults above twenty one years of age marrying a Child.

Whoever,

being a male above

2

[eighteen] years of age, contracts a child marriage shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both.

5. Punishment for Solemnising a child marriage

Whoever performs, conducts or directs any child marriage shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both, unless he proves that he had reason to believe that the marriage was not a child marriage.

6. Punishment for parents or guardians concerned in a child carriage.

Where a minor contracts a child marriage, any person having charge of the minor, whether as parent or guardian or in any other capacity, lawful or unlawful, who does any act to promote the marriage or permits it to be solemnised, or negligently fails to prevent it from being solemnised, shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both: Provided that no woman shall be punishable with imprisonment.

(2) For the purposes of this section, it shall be presumed, unless and until the contrary is proved, that where a minor has contracted a child marriage, the person having charge of such minor has negligently failed to prevent the marriage from being solemnised.

7. Imprisonment not to be awarded for offences under section 3.

Notwithstanding anything contained in section 25 of the General Clauses Act 1897 (X of 1897), or section 64 of the Pakistan Penal Code 1860 (XLV of 1860), a Court sentencing an offender under section 3 shall not be

competent to direct that, in default of payment of the fine imposed, he shall undergo any term of imprisonment.

8. Jurisdiction under this Act.

Notwithstanding anything contained in section 190 of the Code of Criminal Procedure 1898 (V of 1898), no Court other than that of 3* * * a 4 [Magistrate of the first class] shall take cognizance of, or try, any offence under this Act.

9. Mode of taking cognizance of offences.

No Court shall take cognizance of any offence under this Act, 6 [except on a complaint made by the Union Council, or if there is no Union Council in the area, by such authority as the Provincial Government may in this behalf prescribed, and such cognizance shall in no case be taken] after the expiry of one year from the date on which the offence is alleged to have been committed

10. Preliminary inquiries into offences under this Act.

The Court taking cognizance of an offence under this Act shall, unless it dismisses the complaint under section 203 of the Code of Criminal Procedure 1898 (V of 1898), either itself make an inquiry under section 202 of that Code, or direct a Magistrate of the first class subordinate to it to make such inquiry.

11. [Power to take security from Complainant.] Omitted, by the Muslim Family Laws Ordinance, 1961 (VIII of 1961) s.12 (w.e.f 15 th July, 1961).

12. Power to issue an injunction Prohibiting marriage in contravention of this Act.

(1) Notwithstanding anything to the contrary contained in this Act, the Court may, if satisfied from information laid before it through a complaint or otherwise that a child marriage in contravention of this Act has been arranged or is about to be solemnised, issue an injunction against any of

the persons mentioned in sections 3, 4, 5, and 6 of this Act prohibiting such marriage.

(2) No injunction under subsection (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issue of the injunction.

(3) The Court may either on its own motion or on the application of any person aggrieved, rescind or alter any order made under subsection (1).

(4) Where such an application is received, the Court shall afford the applicant an early opportunity of appearing before it either in person or by pleader; and if the Court rejects the application wholly or in part, it shall record in writing its reasons for doing so.

(5) Whoever knowing that an injunction has been issued against him under subsection (1) of this section disobeys such injunction shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both:

Provided that no woman shall be punishable with imprisonment.

13. Amendment of the Dissolution of Muslim Marriages Act, 1939

(VIII of 1939)]. Omitted by the Federal Laws (Revision and declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II

source=(<https://www.ma-law.org.pk/pdflaw/The%20Dissolution%20of%20Muslim%20Marriages%20Act.pdf>)

1. Grounds for decree for dissolution of marriage.(VIII of 1939)

A woman married under Muslim Law shall be entitled to obtain a decree for the dissolution of her marriage on any one or more of the following grounds, namely:

- (i) that the whereabouts of the husband have not been known for a period of four years
- (ii) that the husband has neglected or has failed to provide for her maintenance for a period of two years;

(ii-A) that the husband has taken an additional wife in contravention of the provisions of the Muslim Family Laws Ordinance, 1961;
(iii) that the husband has been sentenced to imprisonment for a period of seven years or upwards;
(iv) that the husband has failed to perform, without reasonable cause, his marital obligations for a period of three years;
(v) that the husband was impotent at the time of the marriage and continues to be so;
(vi) that the husband has been insane for a period of two years or is suffering from leprosy or a virulent venereal disease;
(vii) that she, having been given in marriage by her father or other guardian before she attained the age of sixteen years, repudiated the marriage before attaining the age of eighteen years: Provided that the marriage has not been consummated;
(viii) that the husband treats her with cruelty, that is to say,

(a) habitually assaults her or makes her life miserable by cruelty of conduct even if such conduct does not amount to physical ill-treatment, or
(b) associates with women of evil repute or leads an infamous life, or
(c) attempts to force her to lead an immoral life, or
(d) disposes of her property or prevents her exercising her legal rights over it, or
(e) obstructs her in the observance of her religious profession or practice, or
(f) if he has more wives than one, does not treat her equitably in accordance with the injunctions of the Quran,
(ix) on any other ground which is recognized as valid for the dissolution of marriages under Muslim Law,
Provided that:

(a) no decree passed on ground (i) shall take effect for a period of six months from the date of such decree, and if the husband appears either in person or through an authorised agent within that period and

satisfies the Court he is prepared to perform his conjugal duties the Court shall set aside the said decree; and

(b) before passing a decree on ground (v) the Court shall, on application by the husband, make an order requiring the husband to satisfy the Court within a period of one year from the date of such order that he has ceased to be impotent, and if the husband so satisfied the Court within such period, no decree shall be passed on the said ground.

3. Notice to be served on heirs of the husband when the husband's whereabouts are not known.

In a suit to which clause (i) of section 2 applies:

(a) the names and addresses of the persons who would have been heirs of the husband under Muslim Law if he had died on the date of the filing of the plaint shall be stated in the plaint.

(b) notice of the suit shall be served on such persons, and

(c) such persons shall have the right to be heard in the suit: Provided that paternal-uncle and brother of the husband, if any, shall be cited as party even if he or they are not heirs.

4. Effect of conversion to another faith.

The renunciation of Islam by a married Muslim woman or her conversion to a faith other than Islam shall not by itself operate to dissolve her marriage:

Provided that after such renunciation, or conversion, the woman shall be entitled to obtain a decree for the dissolution of her marriage on any of the grounds mentioned in section 2;

Provided further that the provisions of this section shall not apply to a woman converted to Islam from some other faith who re-embraces her former faith.

5. Right to dower not affected.

Nothing contained in this Act shall affect any right which a married woman may have under Muslim law to her dower or any part thereof on the dissolution of her marriage

6. (Repeal of section 5 of Act, XXVI of 1937)

Rep. by the Repealing and Amending Act, 1942 (XXV of 1942), section 2 and First Sch.

A Guardianship Coordinator's Role in Facilitating Second Parent Adoption

Source =

<https://pakistanlegal.com.pk/child-adoption-guardianship-laws-and-lawyers-services-in-pakistan/>

Our initial guardianship coordinators facilitate the process of second-parent adoptions quickly, allowing the waiting children to find permanent homes sooner. Legal documents can be signed more quickly and easily with us. Our goal is to make the lives of orphanage children better by creating better families for them so that they can live a full and happy life. It is the goal of our organization to ensure that every child has a loving family, and the nature of our organization is such that we are able to help many children without families or whose families cannot take care of them anymore because the nature of our organization allows us to help them.

The Adoption Process Provides Children with Security and Love

A child adopts a parent who offers them love, security, and permanence. It is important to remain committed despite the good times and the bad times. It is important to provide a child with the love, stability, and nurturing environment they deserve.

Once an adoption is finalized, the rights and responsibilities of the original parents are transferred to the adoptive parents. Children who are adopted become permanent members of their families.

No Child Adoption Law Exists in Pakistan

Adoptions of Children are not regulated by law in Pakistan. An adoption lawyer is essential when adopting from a family or orphanage. An application will be filed with the Family Court on your behalf by the Lawyer. A legal adoption process generally involves four to eight hearing dates spread over six to eight weeks. Almost all of the clients seeking child adoptions from Pakistan live overseas, so “Pakistan Legal Advisors” helps them obtain court orders as well as arrange other documents for the child’s international adoption.

Adopting a child in Pakistan requires you to keep this in mind

- - Adopted children do not inherit anything from their adoptive parents.
 - The Islamic faith prohibits the changing of the names of guardians and adoptive parents but permits changing the names of adoptive parents.
 - Christians and other religions cannot adopt Muslim minors.
 - It is necessary to execute the adoption and guardianship deeds.
 - Adoptive parents take over the child’s maintenance rights when their child is adopted.
 - Guardianship court approval is required for minors traveling abroad.

Child's Adoption Process:

Adoptive parents must submit medical reports and written reports.
Form ICA is known to have the following statistics:

- The child's name
- A child's birth date
- Place of birth
- Family Court Adoption
- Parents' names and addresses
- A couple must have been married for three years or more to qualify. You will need a copy of your marriage certificate.
- A minimum age of 25 is required for prospective adoptive parents.
- The cost of raising a child must be affordable for the parents.
- It is compulsory for at least one parent to be of Pakistani descent or to be eligible for a Pakistani NICOP or CNIC.

1- An Orphanage or the Parents of a Child

A child adoption deed and its declaration by a civil court can be used to adopt a child directly from your parents. A declaration decree in your favor will result in the Guardian Court issuing you a Guardian Certificate and Travel Permit.

2- The Children's Protection Authority

A Guardian Court, as well as the Punjab or Sindh Child Protection Authorities, can facilitate adoptions. The Pakistani adoption procedure prohibits the placement of infants in unrecognized centers. It is recommended that child protection centers or recognized child welfare centers handle procedures instead. You must now convince him that you are qualified to adopt a child from Pakistan by making your case to him.

A complete profile is required when adopting a baby in Pakistan, including the baby's gender and age. The application must be prepared by a Pakistani lawyer.

Also needed is information about the adopter's occupation, age, religion, income, etc. The adoption of children from unapproved centers is not allowed in Pakistan. In Pakistan, this service is only provided by Edhi, SOS Village, and other approved centers.

Adoption agencies in Pakistan can assist you in adopting a child if you meet the requirements. The adoption certificate issued by your lawyer in Pakistan will serve as evidence of your adoption after the adoption process in Pakistan is complete.

The Guardians and Wards Act of 1890

The Guardians and Wards Act of 1890 is generally credited with establishing guardianship and custody laws in Asian countries.

The guardian court usually considers the welfare of the minor first when deciding who should have custody of the minor, whether it be the parent or, more traditionally, a grandparent or relative. This law gives custody to children.

A guardianship or custody proceeding in an exceptional family court typically involves three parties:

- **A protective parent (one who adopt children)**
- **Parents (Actual Parents)**
- **The Child**

Sections 17 and 25 of the Guardians and Wards Act of 1890 outline parental rights regarding custody. In this category are “Hizanat” and “Wilayat” rights. A mother’s custody is called “Hizanat,” while a father’s custody is called “Wilayat.”

Power of the court to make order as to guardianship

Source =<https://pja.gov.pk/familylawsordinance>

Family Laws Ordinance, 1961

Rules 8,9, 10

Qanoon e Shahdat Art. 85 & 87

- Certified copy of Nikahnama – admissibility – Nikah Registrar is “public officer”. Nikah Nama is a public document – certified copy can be relied upon unless rebutted.

WEST PAKISTAN FAMILY COURTS ACT **(XXXV OF 1964)**

Section 5

- Concurrent finding that welfare lies as in custody with the mother-mother not remarried – immorality not proved. Insufficient means contains no force as fathers are responsible to maintain wherever they live.

PLD 1995 LAH 91

Section 7(2)

- Whether second proviso to Sect. 7(2) of W.P. Family Courts Act, 1964 had overriding effect on Sect. 9(1) of Guardian & Wards Act, 1890 even in the matter of custody of minors where the question of territorial jurisdiction was involved.
- Family Court has exclusive jurisdiction U/S 5 including the custody and guardianship matters. See W.P. Family Court Rules, 1965 Rule-6.

Section 19

- Decree for maintenance- memo of appeal decree being for less than Rs.25000/- no court fee –no memo of appeal.

1995 SCMR 1720

- Parties either both or one of them neither citizen of Pakistan nor did their marriage was solemnized in Pakistan – while determining question of

jurisdiction of Court in Pakistan, question of citizenship or nationality of parties would not be relevant. According to Sect. 83 C.P.C. even an alien... could sue in Pakistan. Residence of one party or accrual of cause of action wholly or in part within local limits of a Family Court in Pakistan would give the Court jurisdiction to entertain such suit.

Section 19

- Decree for maintenance-memo of appeal decree being for less than Rs.25000/- no court fee----- on memo of appeal.

1995 SCMR 1720

Sect. 5, Sect. 10(4)

- “Dower” could not be stretched to include bridal gifts etc. other than the dower could not be treated as synonymous. Such gifts are in addition to and not in lieu of dower.

W.P FAMILY COURTS RULES 1965

R.7 (1) - Guardian & Wards Act sec.25

- Jurisdiction to hear guardianship cases –sect .5 gives exclusive jurisdiction to Family Courts.

PLD1995 LAH 91

GUARDIAN & WARDS ACT, 1895

The question of jurisdiction, whether to be decided under Guardian & Wards Act or West Pakistan Family Courts Act (XXXV Of 1964) and Rules of 1965 thereto.

Sec.12 &25 read with sec.491 Cr.P.C

- Jurisdiction of criminal court u/s 491 Cr.P.C. is not ousted on account of provisions of section 12, 25 of Guardian & Wards Act. Criminal court have jurisdiction where custody has been illegally removed from lawful custody.

Preamble: It is a special law/Act for special class of people i.e. husband and wife and children in case of their maintenance & custody.

Sect. 17 Expeditious disposal of family matters in shortest possible time – Even provisions of Evidence Act were made not applicable.

1 THE PUNJAB SIKH ANAND KARAJ MARRIAGE ACT 2018 (VI of 2018)

Source =

“https://hrma.punjab.gov.pk/system/files/Sikh_Anand_marriage_act.pdf”

An Act to provide for solemnization and registration of Sikh marriages. It is necessary to make provisions to regulate Sikh marriages commonly known as Anand Karaj; Be it enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent and commencement.

(1) This Act may be cited as the Punjab Sikh Anand Karaj Marriage Act 2018.

(2) It extends to whole of the Punjab.

(3) It shall come into force at once.

2. Definitions.– In this Act:

(a) “Act” means the Punjab Sikh Anand Karaj Marriage Act 2018;

(b) “Anand Karaj” means the lawful union of a Sikh male and a Sikh female solemnized under the Act and conducted in accordance with the practices of the Sikh religion, where the four laavaan, permitted in the Sri Guru Granth Sahib, are recited;

(c) “Anand Karaj Certificate” means the certificate of a marriage issued by the Anand Karaj Registrar;

(d) “Chairman” means the Chairman of a Union Council or Municipal Committee or any officer authorized by the Government to perform the functions of the Chairman under the Act;

(e) “Government” means Government of the Punjab;

(f) “Granthi” means a Sikh who recites the Guru Granth Sahib and solemnizes a marriage between Sikhs;

(g) “prescribed” means prescribed by rules;

(h) “Sikh” means a person who follows Sikh religion as a monotheistic Sikh religion and believes in the scriptures of Guru Granth Sahib and does not subscribe to any other religion;

(i) “Sikh religion” means the belief in Akalpurakh (One Eternal Being), the ten Gurus from Guru Nanak to Guru Gobind Singh and the acceptance of Guru Granth Sahib as the Eternal-Living Guru.

3. Solemnization of Anand Karaj.(VI of 2018)

(1) A Sikh male and a Sikh female may contract a marriage in accordance with Sikh religion, if the parties to the marriage:

(a) are of sound mind and not below the age of eighteen years;

(b) enter into marriage contract with their free and full consent; and

(c) are not related to each other in any degree of consanguinity or affinity which, according to the customary law of Sikhs, renders the marriage between them unlawful.

(2) Nothing in the Act shall be deemed to validate any marriage between the persons who are related to each other in any degree of consanguinity or affinity which would, according to the customary law of Sikhs render a marriage between them illegal.

4. Saving of marriages.(VI of 2018)

Nothing in the Act shall affect the validity of any marriage duly solemnized according to any other marriage ceremony customary among the Sikhs.

5. Registration of marriages(VI of 2018)

- (1) Every marriage between Sikhs shall be registered under the Act.
- (2) For purposes of the registration of the marriages under the Act, the Government, in the prescribed manner, shall grant license to one or more persons professing Sikh religion to be called Anand Karaj Registrar authorizing them to grant Anand Karaj Certificate.
- (3) The bridegroom and the bride or a Granthi shall fill the Anand Karaj Form and present it, within thirty days of the marriage, to the Anand Karaj Registrar for registration of the marriage and a copy thereof shall be sent to the Chairman
- (4) The parties to the marriage or the Granthi or any other person who solemnizes Anand Karaj shall accurately fill all the columns of the Anand Karaj Form.
- (5) On receipt of the Anand Karaj Form, the Anand Karaj Registrar, having been satisfied that the marriage has been duly solemnized under the Act, shall register the marriage and issue the Anand Karaj Certificate.
- (6) A marriage which is not solemnized by the Anand Karaj Registrar shall, for the purpose of registration under the Act, be reported, within thirty days of the solemnization of the marriage, to him by the Granthi or the person who solemnized the marriage.
- (7) The Anand Karaj Form, the register to be maintained by the Anand Karaj Registrar, the records to be preserved by a Union Council, the manner in which the Anand Karaj shall be registered, supply of the copies of Anand Karaj Certificate and the fees to be charged therefor shall be such as may be prescribed.

(8) Whoever contravenes the provisions of this section shall be punished, in the prescribed manner, with fine which may extend to ten thousand rupees.

6. Dissolution of marriage(VI of 2018)

(1) Any party that wishes to dissolve the marriage shall give to the Chairman, notice in writing of his or her intention to do so and shall supply a copy thereof to the other party.

(2) Within thirty days of the receipt of the notice under subsection (1), the Chairman shall constitute an Arbitration Council in the prescribed manner for the purpose of bringing about reconciliation between them and the Council shall take all steps necessary to that effect.

(3) If the reconciliation is not effected within ninety days from the date of the notice, the Chairman shall, after the lapse of the ninety days, declare the marriage to have been dissolved and issue the Certificate of the Dissolution of Marriage in the prescribed manner.

7. Power to make rules.(VI of 2018)

The Government may, by notification in the official Gazette, make rules to carry out the purposes of the Act.

8. Overriding effect.(VI of 2018)

Notwithstanding anything contained in any other law for the time being in force, the provisions of this Act shall have effect.

9. Repeal and savings.(VII of 1909)

(1) The Anand Marriage Act, 1909 (VII of 1909), in its application to the Province of Punjab, is hereby repealed.

(2) Notwithstanding the repeal of the said Act, anything done, action taken, rules or orders made under the repealed Act, shall, so far they are not

inconsistent with the provisions of the Act, be deemed to have been done, taken, made or issued under the Act and shall have effect accordingly.

(3) Any document referring to the repealed Act shall be construed as referring to the corresponding provisions of the Act.